



INVICTUS NASHVILLE CHARTER SCHOOL

SCHOOL POLICY MANUAL

2026-27

The governing board's adopted policies. Each policy is a self-contained section that may be revised or replaced independently, in alignment with Tennessee Public Charter School Commission model policies and applicable state and federal law.

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BOARD ADOPTION & APPROVAL

This School Policy Manual was reviewed and adopted by the Board of Directors of Invictus Nashville Charter School. Each policy section carries its own authority line and may be amended by action of the governing board. Amendments take effect on the date recorded in the revision log maintained by the Director of Operations.

CERTIFICATION OF ADOPTION

BOARD CHAIR — SIGNATURE

DATE

HEAD OF SCHOOLS — SIGNATURE

DATE

BOARD SECRETARY — SIGNATURE

DATE

REVISION RECORD

SECTION	ACTION	ADOPTED / REVISED	RECORDED BY
01-36	Initial adoption		

CODE OF ETHICS AND CONFLICT OF INTEREST POLICY

AUTHORITY Charter Commission Policy 1106

Definitions

- **"School"** means Invictus Nashville Charter School and includes all boards, committees, commissions, authorities, corporations, or other instrumentalities appointed or created by Invictus.
- **"Officials or employees"** means any official, officer, employee, or servant of Invictus Nashville Charter School, or any member of any board, agency, commission, authority, or corporation of Invictus, whether compensated or not.
- **"Key administrative staff"** means the Head of Schools, Director of Operations, and any other employee with authority to commit school funds, enter contracts, or make employment decisions on behalf of Invictus.
- **"Personal interest"** means a financial interest of the official or employee, or a financial interest of that person's spouse or child living in the same household, in the matter to be voted upon, regulated, supervised, or otherwise acted upon in an official capacity.

Code of Ethics

Invictus Nashville Charter School maintains a code of ethics and conflict of interest policy in alignment with Charter Commission Policy 1106. The following standards apply to all officials and employees.

Disclosure Form. The school shall maintain a disclosure form for use by any official or employee when disclosing personal interests in voting or non-voting matters. Completed forms are retained in the employee's or board member's personnel or governance file.

Disclosure of Personal Interest in Voting Matters. An official or employee with responsibility to vote on a measure shall disclose, during the meeting at which the vote takes place and before the vote is cast, any personal interest that affects or that would lead a reasonable person to infer that it affects the official's or employee's vote. The disclosure shall be included in the meeting minutes. The official or employee may, to the extent allowed by law, recuse himself or herself from voting on the measure.

Disclosure of Personal Interest in Non-Voting Matters. An official or employee who must exercise discretion relative to any matter other than casting a vote, and who has a personal interest in that matter, shall disclose the interest before exercising discretion when possible. The official or employee may, to the extent allowed by law, recuse himself or herself from the exercise of discretion in the matter.

Annual Disclosure for Key Administrative Staff. The Head of Schools, Director of Operations, and all key administrative staff shall complete and submit a written conflict of interest disclosure form annually, no later than September 1 of each school year. The form shall identify any outside employment, financial relationships, or personal interests that could reasonably be perceived as a conflict with the employee's responsibilities to Invictus. Completed forms are retained by the Director of Operations and are available for review by the Board Chair upon request.

Outside Employment. Employees may hold outside employment provided it does not interfere with their duties at Invictus Nashville, does not create a conflict of interest, and does not involve the use of school resources, materials, or confidential information. Outside employment that presents a conflict of interest must be disclosed on the annual disclosure form. The Head of Schools retains authority to determine whether a conflict exists and to require resolution.

Acceptance of Gifts and Other Things of Value. An official or employee, or that person's spouse or child living in the same household, may not accept from anyone other than the Charter Commission or Invictus, directly or indirectly, any gift, money, gratuity, or other consideration or favor of any kind that a reasonable person would understand was intended to influence the vote, official action, or judgment of that official or employee. It is not a violation of this policy to receive entertainment, food, refreshments, meals, health screenings, or beverages provided in connection with a conference sponsored by an established or recognized statewide association of school officials or by an umbrella or affiliate organization of such association.

Misuse of Public Position. No official or employee shall use his or her official position or the resources of Invictus Nashville Charter School to secure personal advantage, to benefit any private interest, or to take any action that conflicts with the interests of the school or its students.

Violations. Violations of this policy shall be reported to the Head of Schools or, where the Head of Schools is the subject of the alleged violation, to the Board Chair. Substantiated violations may result in disciplinary action up to and including termination, and may be referred to appropriate authorities as required by law.

CROSS-REFERENCES Financial management conflict of interest requirements related to federal grant administration are governed by the INCS Financial Policies and Procedures. Employee outside employment obligations are addressed in this section; the Employee Handbook references this policy.

GRIEVANCE AND COMPLAINT POLICY AND PROCEDURES

AUTHORITY Charter Commission Policies 1200, 1801

Policy Statement. Invictus Nashville Charter School is committed to addressing complaints and grievances from parents, guardians, students, and employees fairly, promptly, and without retaliation. This policy governs all general complaints against the school, its employees, or its volunteers. Complaints involving ADA/Section 504, IDEA, Title IX, or Title VI follow the corresponding procedures in this handbook. The governing board is the first avenue of appeal for any complaint not resolved at the school level.

Non-Retaliation. Invictus does not retaliate against any parent, guardian, student, or employee who raises a concern or files a complaint in good faith under this policy. Employees are additionally protected by Tennessee whistleblower law (T.C.A. 50-1-304). Any person who believes they have experienced retaliation for raising a concern may include that allegation in a complaint filed under this policy. Complaints made with malicious intent or that are knowingly false are a violation of school policy and may result in appropriate consequences.

Complaints and Grievances Handled by the School

The following types of complaints are resolved at the school level. The Charter Commission does not mandate decisions in these matters: employment issues; transportation issues except for students experiencing homelessness, students with disabilities, or students in foster care; disagreements with a teacher or another student; bullying issues except bullying that rises to the level of a civil rights violation under Title IX, Title VI, or the ADA; and disagreements over a discipline decision except the discipline of students with disabilities including students with IEPs or 504 Plans.

General Grievance and Complaint Procedure

This procedure applies to complaints submitted by parents, guardians, students, and employees. Employees who have concerns about workplace matters are encouraged to follow this procedure. The Employee Handbook references this procedure for serious concerns and escalations.

1 Filing a Complaint

Submit the complaint in writing to the Head of Schools at bjones@invictus-nash.org. The Head of Schools may assign the complaint to a designee based on the nature of the matter. Complaints involving ADA/Section 504, IDEA, Title IX, or Title VI will be routed to the appropriate coordinator and processed under the corresponding procedure in this handbook. If the complaint is against the Head of Schools, submit it directly to the Board Chair at boardchair@invictus-nash.org.

The written complaint must include the underlying facts; the names of all individuals involved including witnesses and the date, time, and location of the incident or alleged violation; a description of any prior attempts to resolve the matter at the school level; and copies of any supporting documentation or evidence.

2 Complaint Investigation

The Head of Schools, or designee, will schedule an investigative meeting within five school days of receiving the complaint. The complainant and any representative will have the opportunity to present the complaint orally and submit additional evidence. Invictus will complete its investigation and provide a written response within 30 calendar days of receiving the complaint, unless the complainant agrees in writing to an extension. A complainant's failure to cooperate with the investigation may result in dismissal of the complaint due to insufficient evidence.

3 Governing Board Appeal

If the complainant is not satisfied with the school's written response, they may appeal to the Invictus governing board within 30 calendar days of receiving that response. The appeal must include the original complaint, the school's written response, and any additional information the complainant wishes to submit. The governing board will respond in writing within 30 calendar days. Submit board appeals to Neysa Taylor at neysa.taylor@board.invictus-nash.org.

4 Charter Commission Referral

If the complaint is not resolved following governing board review, or if it involves an alleged violation of law, the charter agreement, special education rights including IDEA, child abuse, or a civil rights matter, the complainant may submit a formal complaint to the Tennessee Public Charter School Commission. A formal complaint must identify the school involved; clearly describe the grievance with supporting documentation; describe how the complainant attempted to resolve the matter with the school and governing board; and be filed within 180 calendar days of the alleged violation unless the Commission determines special circumstances exist.

IDEA Complaints. Complaints related to the rights of students with disabilities under IDEA follow the general grievance procedure above and may be assigned to the Special Education Coordinator. IDEA complaints may also be submitted to the Charter Commission under Commission Grievance and Complaints Policy 1200. Administrative and due process

complaints under IDEA may be filed directly with the Tennessee Department of Education, Office of General Counsel, 9th Floor, Andrew Johnson Tower, 710 James Robertson Parkway, Nashville, Tennessee 37243. Telephone: 615-741-2921.

CROSS-REFERENCES ADA/Section 504 complaints: see ADA/Section 504 Complaint Policy in this handbook. Title IX complaints: see Title IX and Sexual Harassment Policy in this handbook. Employee whistleblower protections: Employee Handbook, Section 5. Family-facing complaint summary: Student and Family Handbook, Section 4.

RECORDS MANAGEMENT POLICIES

AUTHORITY Charter Commission Policies 1407, 1408, 2701, 5114, 6404, 6600 · Procedures 1014, 1020, 1039 · 2 CFR 200.334

Policy Statement. Invictus Nashville Charter School maintains records in accordance with state and federal law, Charter Commission retention schedules, and federal Uniform Guidance requirements (2 CFR 200.334). All records that may be destroyed by law shall be disposed of in a manner that ensures complete destruction. No record subject to a pending litigation, audit, or investigation may be destroyed until the matter is fully resolved and final action is taken.

Public Records

Invictus shall make available for inspection or copying any public record not specifically exempt from disclosure, in accordance with the timeframes established by Tennessee public records law. Requests for public records should be directed to the Public Records Request Coordinator:

Jonathan Salls

Director of Operations · Public Records Request Coordinator

Invictus Nashville Charter School · 2526 Lebanon Pike, Nashville, TN 37214

jsalls@invictus-nash.org

The Emergency Operations Plan is a confidential document exempt from public records requests pursuant to T.C.A. 49-6-808. Any public records request that inadvertently seeks EOP materials shall be declined by the Public Records Request Coordinator, who shall notify the requestor of the exemption in writing.

Student Records

A cumulative record shall be maintained for each enrolled student. The record shall contain a health record, attendance record, and scholarship record; shall be kept current; and shall accompany the student throughout their school career at Invictus. The name on the student's record must match the name on the student's birth certificate unless legal name change documentation is provided. When a student transfers to another school, copies of the student's records, including disciplinary records, shall be forwarded to the receiving school. All records shall be transmitted in accordance with FERPA. Access to student records is restricted to authorized school officials with a legitimate educational interest. All medical information related to a student's HIV or AIDS status shall be maintained in a locked file separate from the

student's cumulative record. HIV or AIDS status shall not be added to a student's permanent educational or health records without prior written consent of the parent or guardian and shall never be released to the public.

Family Educational Rights and Privacy Act (FERPA)

20 U.S.C. 1232g; 34 C.F.R. Part 99. The Family Educational Rights and Privacy Act grants parents and eligible students the following rights with respect to education records at Invictus:

- The right to inspect and review the student's education records within 45 days of a written request submitted to the Head of Schools or designee.
- The right to request amendment of records believed to be inaccurate or misleading. If Invictus declines to amend the record, the parent or guardian will be notified and advised of the right to a hearing.
- The right to consent before Invictus discloses personally identifiable information from education records, except as FERPA permits without consent. Disclosure without consent is permitted to school officials with a legitimate educational interest, to officials of a receiving school upon transfer, in response to a judicial order or lawfully issued subpoena, and in other circumstances specified by FERPA.
- The right to file a complaint with the U.S. Department of Education concerning alleged failures to comply with FERPA: Family Policy Compliance Office, U.S. Department of Education, 400 Maryland Avenue SW, Washington, D.C. 20202-4605.

Directory Information

Invictus has designated the following as directory information, which may be disclosed without prior written consent unless a parent or guardian has submitted a timely opt-out: student name; address; telephone listing; electronic mail address; photograph; date and place of birth; dates of attendance; grade level; participation in officially recognized activities and sports; degrees, honors, and awards received; most recent educational agency or institution attended; and student ID number or unique personal identifier used in electronic systems only where it cannot be used to access records without additional authentication factors.

Parents and guardians who do not wish Invictus to disclose directory information must notify the school in writing within 30 days after the first day of school each academic year. Two federal laws require Invictus to provide military recruiters with student names, addresses, and telephone listings upon request, unless the parent or guardian has submitted a written opt-out.

Financial and Personnel Records

Financial Records. Invictus shall maintain financial records as required by state and federal law. The governing board shall make an annual progress report to the Charter Commission and the Commissioner of Education, including financial records showing revenues and expenditures, which shall be public information. Financial records retention is governed by the unified Records Retention Schedule in this section.

Personnel Records. Invictus shall maintain personnel records and permit inspection of the same, except for matters deemed confidential by law. Criminal History Record Information shall be maintained in a secure, separate file.

Records Retention Schedule

The following schedule governs all record types. Where state and federal timelines differ, the longer period applies. Any record subject to a pending audit, litigation, or claim shall be held until the matter is fully resolved regardless of the scheduled retention period.

RECORD TYPE	RETENTION	AUTHORITY / NOTES
Accident Reports	1 year from date of accident, then destroy	—
Safety Drill Records	Minimum 5 years after drill, then destroy	T.C.A. 49-6-807; TPCSC LEA Policy 3202
Asbestos Inspection Reports & Management Plans	Retain as long as building is in use as a school	—
Audits of Internal School Activity Funds	5 years, then destroy; hold if active audit	—
District and School Audits	5 years, then destroy; hold if active audit	T.C.A. 49-13-127
Annual Operating Budget	5 years, then destroy	T.C.A. 49-13-127
Education Complaints	Permanent record	TDOE RDA 11001
Federal Grant Records	3 years from final expenditure report; hold if litigation, claim, or audit pending until resolution	2 CFR 200.334
Physical Restraint & Seclusion Incident Reports	7 years	—
Cumulative Pupil Records	Permanent record	—
Special Education Records	Permanent record; copy retained after student transfer	—
Special Education Federal Finance Records	3 years after completion of project, then destroy	—
Personnel Records (general)	7 years after employment ends, then destroy	TPCSC LEA Policy 5114
CHRI (background check records)	7 years after employment ends; 1 year for non-hired applicants	TBI Guide for Non-Criminal Justice Agencies; TPCSC LEA Policy 5118
Textbook Reports	6 years, then destroy	T.C.A. 49-6-2203
Deeds to School Property	Permanent record	—

CROSS-REFERENCES Financial records management rules: INCS Financial Policies and Procedures. Student records audit procedures: Commission Procedure 1020. Records transfer procedures: Commission Procedure 1039. Emergency Operations Plan confidentiality exemption: T.C.A. 49-6-808.

SPECIAL EDUCATION, CHILD FIND, AND REFERRAL PROCEDURES

AUTHORITY Charter Commission Policy 1801 · Procedures 1001 · 34 C.F.R. Part 300 · T.C.A. 49-10-1301 through 1306

Special Education. Invictus Nashville Charter School shall provide access to a free appropriate public education to all children with disabilities ages three through twenty-one, inclusive, in accordance with IDEA, applicable Tennessee state law, and Charter Commission Policy 1801. All children with disabilities attending Invictus receive a free and appropriate public education and the services necessary to meet their unique needs. The rights of children with disabilities and their parents and guardians are protected at every stage of the identification, evaluation, placement, and service delivery process.

Child Find

Under IDEA, Invictus has an affirmative obligation to identify, locate, and evaluate all children with disabilities from birth through age twenty-one, regardless of the severity of their disability. This obligation applies even when the school is not currently providing special education services to a child, and it applies to children advancing from grade to grade. Evaluations of children suspected of having a disability shall not be delayed or denied because the student is currently receiving supports through the RTI2 process. Invictus must immediately initiate referral procedures for any student suspected of having a disability, regardless of how long the student has participated in any intervention program.

Invictus will publicize and disseminate information about its Child Find program, including a description of the special education program, available supports and services, and the name and contact information of the school's Special Populations Coordinator. This information will be provided in the Student and Family Handbook and posted on the school website. Invictus will maintain a public display of Child Find information in a clearly visible, high-traffic area of the school. Invictus will annually provide all parents and guardians of children with disabilities written information regarding their rights and responsibilities under federal and state special education law.

Gifted Child Find. Invictus conducts universal screening through NWEA MAP, which identifies high-performing students across grade levels. Beginning in the 2026-27 school year, Invictus will implement a formal gifted child find protocol consistent with Commission Gifted Students Procedures. The school's staff member holding a gifted endorsement will lead this process. Progress toward full implementation will be reported to the Commission as part of annual self-assessment submissions.

Referral Procedures

Any person, including but not limited to a parent or guardian, teacher, or the RTI2 team, may refer a child to the special education evaluation team. Reasons for referral include but are not limited to failure to pass a hearing or vision screening, unsatisfactory performance on group achievement tests or accountability measures, repeated failure in one or more subjects, inability to progress in developmentally appropriate activities, and receipt of supports outside the school setting. All referrals from parents and others who suspect a child has a disability will be forwarded to the special education evaluation team. Parents and guardians will receive written notice of any referral not initiated by the parent or guardian. Invictus will annually train teachers and relevant staff on referral procedures, including the requirement that evaluations shall not be delayed or denied due to the RTI2 process.

Physical Restraint and Seclusion

The use of physical restraint and seclusion at Invictus Nashville Charter School is governed by the INCS Physical Restraint and Seclusion Policy embedded in this section, adopted in accordance with T.C.A. 49-10-1301 through 1306, IDEA Part B (34 C.F.R. 300.530), and Tennessee Department of Education guidelines. Physical restraint and seclusion are crisis intervention measures of last resort and are never used as punishment, discipline, convenience, or a substitute for appropriate educational programming or IEP services.

Policy Statement. Invictus is committed to maintaining a safe, supportive learning environment for all students. Given that Invictus serves students in Primary ages 3-6 and Lower Elementary ages 6-9, de-escalation, Montessori-aligned environmental support, and the Peace Education curriculum are the primary tools for managing behavior. Physical intervention is used only when a student poses an imminent physical danger to themselves or others and no less restrictive intervention is available.

Definitions

- **Physical Restraint** means any bodily force that immobilizes or reduces the ability of a student to move their arms, legs, body, or head freely. This does not include physical escort, brief physical prompting to redirect behavior, or physical contact intended to comfort or assist a student.
- **Seclusion** means the involuntary confinement of a student alone in a room or area from which the student is prevented from leaving. This does not include a time-out in an area of the classroom or a supervised calm-down space from which the student may leave voluntarily.
- **Emergency Situation** means a situation in which a student's behavior poses an immediate threat of physical harm to the student or others and no other intervention would reasonably prevent that harm.
- **Mechanical Restraint** means the use of any device or equipment to restrict a student's freedom of movement. Mechanical restraint is prohibited at Invictus Nashville Charter School.

STRICTLY PROHIBITED PRACTICES

Mechanical restraint of any kind; chemical restraint; physical restraint that restricts breathing, applies pressure to the chest, back, or neck, or places a student face-down; any restraint that causes pain or is designed to cause pain; seclusion in a locked room or any space where the student cannot be continuously monitored; restraint or seclusion as punishment, discipline, or for the convenience of staff; and restraint or seclusion as a substitute for appropriate behavioral support or IEP services.

Permissible Use of Physical Restraint. Physical restraint may only be used when all of the following conditions are met: the student's behavior presents an immediate, serious threat of physical harm to the student or others; less restrictive interventions have been attempted and have failed or are not feasible given the immediacy of the threat; the restraint is the least restrictive intervention capable of safely managing the emergency; the restraint is applied by trained staff only; and a second staff member is present as an observer when possible.

De-Escalation and Prevention. Before any physical intervention, staff must attempt de-escalation strategies including verbal de-escalation, environmental redirection, offering a regulated space on a voluntary basis, engaging the student's preferred adult, brief physical escort with consent, and calling for administrative or behavior support. Physical restraint is initiated only when these strategies have been attempted and the emergency criteria above are met.

Training Requirements. All instructional staff, administrators, and support staff must complete CPI Nonviolent Crisis Intervention training prior to working independently with students and must renew certification annually. Staff hired mid-year must complete CPI orientation within 30 days of hire and must not perform physical restraint until certified. The Director of Operations maintains a log of all CPI certifications and training completion records.

Incident Procedures. During a restraint or seclusion incident: only trained staff initiate physical restraint; a second observer is present whenever possible; staff continuously monitor the student throughout; restraint is ended immediately when the emergency condition resolves; and verbal communication with the student continues throughout. Immediately after an incident: the staff member who performed the restraint notifies the Head of Schools immediately; the student is assessed for physical injury; parents or guardians are notified by phone within one hour; written parent notification is sent home the same school day or the following business day; and for students with IEPs or 504 Plans the Special Populations Coordinator is notified the same day.

Documentation. A Physical Restraint and Seclusion Incident Report must be completed within 24 hours by the staff member who performed the restraint and reviewed by the Head of Schools. The report must include: student name and grade; date, time, location, and duration; names and titles of all staff present; description of the precipitating behavior; de-escalation strategies attempted; type of restraint or seclusion used; student's condition before, during, and after; parent and guardian notification details; and follow-up actions taken. Incident reports are retained for seven years per the records retention schedule.

Parent and Guardian Notification. Parents and guardians must receive same-day phone notification within one hour of the incident, written notification within one school day, and an opportunity to meet with staff to discuss the incident and review the student's behavioral support plan.

Reporting to the Charter Commission. Invictus will report incidents of physical restraint and seclusion to the Tennessee Public Charter School Commission as required by Commission policy and applicable state guidelines. Aggregate incident data will be included in annual compliance reports.

Students with Disabilities. For students with IEPs or 504 Plans, Behavioral Intervention Plans must address behaviors most likely to lead to a crisis. Any restraint incident involving a student with a disability must be communicated to the IEP or 504 team within one school day. Recurring incidents trigger a mandatory IEP team review to assess whether the behavioral support plan requires revision.

Suspension and Expulsion of Students with Disabilities

Invictus implements discipline procedures for students with disabilities in full compliance with IDEA Part B (34 C.F.R. 300.530) and Charter Commission Policy 1801. Students with disabilities may be removed from their current placement for up to ten cumulative school days per school year for disciplinary infractions without triggering IDEA procedural protections. When a student with a disability is removed for more than ten cumulative school days in a school year, or when a removal constitutes a change of placement, the school must provide services that enable the student to continue to participate in the general education curriculum and progress toward IEP goals, and must conduct a Manifestation Determination Review within ten school days with a minimum of 24 hours notice to the parent or guardian. For students aged three through twenty-one, removal for weapons, drugs, or serious bodily injury may result in placement in an Interim Alternative Educational Setting for up to 45 school days, regardless of whether the conduct was a manifestation of the disability.

IDEA Complaints

Complaints related to the rights of students with disabilities follow the general grievance procedure in this handbook and may be assigned to the Special Populations Coordinator. IDEA complaints may also be submitted directly to the Charter Commission under Commission Policy 1200. Administrative and due process complaints may be filed directly with the Tennessee Department of Education, Office of General Counsel, 9th Floor, Andrew Johnson Tower, 710 James Robertson Parkway, Nashville, Tennessee 37243. Telephone: 615-741-2921.

Surrogate Parent Policy and Procedure

Charter Commission Policy 6506. Invictus will recruit, train, and assign a surrogate parent as required by law when no parent or guardian is available or able to fulfill that role. A surrogate parent is required when the parent as defined in 34 C.F.R. 300.519 cannot be identified; the school cannot locate a parent after reasonable efforts; the child is a ward of the state; or the child is an unaccompanied homeless youth. The surrogate parent represents the child in all

matters relating to identification, evaluation, educational placement, and the provision of FAPE. A person selected as a surrogate parent must not be an employee of the SEA, LEA, or any other agency involved in the education or care of the child; must have no personal or professional interest that conflicts with the child's interests; and must have the knowledge and skills to adequately represent the child. Invictus will follow the Tennessee Department of Education's Educational Surrogate Training Manual to recruit, train, and assign surrogate parents when needed.

CROSS-REFERENCES Physical Restraint and Seclusion: embedded in this section. Discipline of students with disabilities: Student Discipline Policy and Procedures section of this handbook. Gifted students: Commission Gifted Students Procedures. Child Find procedures: Commission Procedure 1001. Surrogate Parent: Commission Policy 6506.

ADA / SECTION 504 COMPLAINT POLICY AND PROCEDURE

AUTHORITY Charter Commission Policy 1802 · 29 U.S.C. 794 · 42 U.S.C. 12101 · 34 C.F.R. Part 104

Policy Statement. Invictus Nashville Charter School provides equal access to all programs and activities for students and staff with disabilities in accordance with the Americans with Disabilities Act and Section 504 of the Rehabilitation Act of 1973. A copy of each complaint received and the school's written response will be provided to the Charter Commission's ADA/Section 504 Coordinator.

Stacey Jones

Special Populations Coordinator · ADA / Section 504 Coordinator

2526 Lebanon Pike, Nashville, TN 37214 · Telephone: 615-378-5490

sjones@invictus-nash.org

Complaint Procedure

1 Filing a Complaint

A student, parent, guardian, or staff member with an ADA/Section 504 complaint submits the complaint in writing to the ADA/Section 504 Coordinator. The complaint must include the underlying facts; the names of all individuals involved, the date, time, and location of the incident or alleged violation; a description of any prior attempts to resolve the matter at the school level; and copies of any supporting documentation or evidence.

2 Complaint Investigation

The ADA/Section 504 Coordinator will schedule an investigative meeting within five school days of receiving the complaint. Invictus will complete its investigation and provide a written response within 30 calendar days of receiving the complaint, unless the complainant agrees in writing to an extension. A complainant's failure to cooperate with the investigation may result in dismissal of the complaint due to insufficient evidence.

3 Investigative Report

The school's written response will include findings of fact; conclusions of law; disposition of the complaint and rationale; corrective actions if warranted; and notice of the complainant's right to appeal within 30 calendar days. If the school finds merit in a complaint, corrective actions and a remedy for all affected students, parents, and guardians will be imposed. For unlawful discrimination complaints arising under federal law, complainants may also submit a complaint at any time to the U.S. Department of Education, Office for Civil Rights.

4**Appeal**

If the complainant is not satisfied with the Investigative Report, they may appeal in writing to the Head of Schools within 30 calendar days. The Head of Schools will respond in writing within 30 calendar days of receiving the appeal.

Section 504 Due Process Hearing Procedures

Section 504 of the Rehabilitation Act of 1973 provides the right to an impartial due process hearing if a parent or guardian wishes to contest any action of the school regarding a child's identification, evaluation, or placement under Section 504.

Requesting a Hearing. A parent or guardian who wishes to challenge an action or omission regarding identification, evaluation, or placement of a student with a disability under Section 504 shall submit an oral or written request for a due process hearing to the school's Section 504 Coordinator.

Hearing Officer. The Head of Schools or designee will appoint an impartial hearing officer within 15 days of receiving the request. The hearing officer will be engaged as an independent contractor at no expense to the parent or guardian. The hearing officer must not be a current employee of the school or district, must not be related to any member of the governing board, and must be familiar with Section 504 requirements.

Notice of Hearing. The hearing officer will notify all parties of the time, place, and date of the hearing at least five school days before it is held. The hearing must be held no later than 45 days after the request is received, unless the parties agree in writing to an extension.

Hearing Procedures. The parent or guardian has the right to participate personally and to be represented by an attorney or advocate at the parent's own expense. Evidence including documents and testimony will be presented by both parties.

Decision. The hearing officer may issue an oral ruling or take the matter under advisement and issue a written opinion. The decision must address all issues raised by the parent or guardian and specify any corrective actions the school must take. The decision must be issued within 45 days of receiving the request. The hearing officer may not award attorneys' fees.

Review and Appeal. If the parent or guardian is not satisfied with the hearing officer's decision, they may seek review in a court of competent jurisdiction.

EXTERNAL COMPLAINT RESOURCES

ADA complaints: U.S. Department of Justice, Civil Rights Division, Disability Rights Section, 950 Pennsylvania Avenue NW, Washington, D.C. 20530. Telephone: 1-800-514-0301.

Section 504 complaints: U.S. Department of Education, Office for Civil Rights, 61 Forsyth Street SW, Suite 19T10, Atlanta, GA 30303-8927. Telephone: 404-974-9406. Email: OCR.Atlanta@ed.gov.

CROSS-REFERENCES General grievance procedures: Grievance and Complaint Policy in this handbook. IDEA complaints and due process: Special Education, Child Find, and Referral Procedures section of this handbook.

REGISTERED SEX OFFENDER POLICY

AUTHORITY Charter Commission Policy 1808 · T.C.A. 40-39-211 · T.C.A. 49-6-4214 · TPCSC LEA Policy 1808

Policy Statement. Individuals registered as sex offenders in Tennessee or any other state are prohibited from the premises of Invictus Nashville Charter School, except in the limited circumstances stated in this policy and in state law.

Employment. An individual listed on the Tennessee Sex Offender Registry or the sex offender registry of any other state is ineligible for employment at Invictus Nashville Charter School. The school verifies sex offender registry status for all prospective employees, contractors, and volunteers as part of the pre-employment background check process, prior to the individual assuming any duties or having any access to students.

Presence on School Property. No registered sex offender, other than a student enrolled at Invictus, shall come on, about, or within 1,000 feet of the school's property line, except as provided by state law. Invictus uses the Raptor Visitor Management System to check all visitors against the national sex offender registry at the point of entry. Any visitor identified as a registered sex offender will be denied entry and, where appropriate, law enforcement will be notified.

Parents and Guardians Who Are Registered Sex Offenders. A parent or legal guardian of an enrolled student who is a registered sex offender may attend a conference with school officials only with the prior written permission of the Head of Schools or a designated administrator. A registered sex offender who is a parent or legal guardian may come within the 1,000-foot limit solely for the purpose of dropping off or picking up their enrolled child or children. Any such visit is subject to staff supervision and must follow the school's check-in procedures.

Response Procedures. If a registered sex offender is identified on or near school property in violation of this policy or state law, school staff will notify the Head of Schools immediately, contact law enforcement if the individual's presence constitutes a legal violation, document the incident, and follow additional procedures established in the Emergency Operations Plan.

CROSS-REFERENCES Visitor management and entry procedures: Emergency Operations Plan. Background check requirements: Human Resources Policies section of this handbook.

PROPERTY SALES / DISPOSAL POLICY

AUTHORITY Charter Commission Policies 2403, UGG · 2 C.F.R. 200.313 · T.C.A. 49-13-127

Policy Statement. When Invictus Nashville Charter School determines that property it owns is no longer needed for public school purposes, the Head of Schools or designated financial officer shall dispose of that property in accordance with state law and applicable federal regulations. The Director of Operations is responsible for ensuring the highest possible return on any property sold and for managing all disposition procedures.

Property Disposal — State-Funded and Non-Federal Property. The Director of Operations will ensure compliance with all applicable state requirements when disposing of school property not purchased with federal funds. Disposal methods may include sale, trade-in, or exchange. Documentation of the disposal method, date, and proceeds will be maintained in the school's financial records.

Disposition of Equipment Purchased with Federal Dollars

When federally funded equipment is no longer needed for the original project, program, or any other currently supported federal activity, the Director of Operations will notify the Charter Commission, which will contact the awarding agency or pass-through entity for disposition instructions. Items with a current fair market value of \$5,000 or less may be retained, sold, or otherwise disposed of with no further obligation to the federal awarding agency. Items with a current fair market value of more than \$5,000 require the school to either pay the federal awarding agency an amount equal to the federal share of the current market value, or obtain written disposition instructions from the awarding agency.

When acquiring replacement equipment, the school may use the equipment being replaced as a trade-in or sell it and apply the proceeds toward the cost of the replacement. Invictus will request prior approval from the granting agency before disposing of federally funded capital assets, document the disposition method, and retain all related records per 2 C.F.R. 200.313(e) and the records retention schedule in this handbook.

CROSS-REFERENCES Inventory and Equipment Policies: Section 9 of this handbook. Financial records retention: Records Management Policies section of this handbook. Federal procurement and asset management: INCS Financial Policies and Procedures.

SCHOOL SUPPORT ORGANIZATIONS POLICY

AUTHORITY Charter Commission Policy 2404

Policy Statement. All school support organizations operating in connection with Invictus Nashville Charter School shall abide by all applicable federal, state, and local laws, ordinances, and regulations. It is the responsibility of Invictus to approve, manage, and document relationships between the school and school support organizations.

Definitions

- **School Support Organization** is any organization, club, or group that operates for the purpose of supporting the school's educational mission and that functions in connection with the school. This includes parent-teacher organizations, booster clubs, and similar groups.
- **Student Activity Funds** are funds generated by students and managed by the school on behalf of students. These are distinct from school support organization funds.

Authorization and Oversight. No school support organization may operate in connection with Invictus without prior approval of the Head of Schools. Authorized school support organizations must maintain a constitution or bylaws, elect officers, and keep accurate records of all financial activity. The Head of Schools or designee will establish procedures for approving, monitoring, and if necessary suspending or revoking the authorization of any school support organization.

Financial Requirements. Each authorized school support organization must maintain separate bank accounts in the organization's name. School support organization funds may not be commingled with school funds or student activity funds. The organization's officers are responsible for ensuring that funds are safeguarded and spent only for purposes related to the organization's stated goals. All books, records, and bank account information must be made available to officials of the governing board, the Head of Schools, or auditors of the Office of the Comptroller of the Treasury upon request.

Fundraising. All fundraising activities conducted by school support organizations require prior approval of the Head of Schools or designee. Fundraising activities must comply with applicable law and must not create obligations on the school that have not been approved in advance.

Concessions and Parking. The Head of Schools may authorize an approved school support organization to operate a concession stand or collect parking fees at a school event on school property. Prior approval of the Head of Schools or designee is required. Any money payable to the school under such an agreement will be considered school support organization funds and not student activity funds, provided the organization supplies the required collection documentation.

INVENTORY AND EQUIPMENT POLICIES

AUTHORITY Charter Commission Policy 2702, UGG · 2 C.F.R. Part 200 · TPCSC LEA Policy 2702

Policy Statement. Invictus Nashville Charter School maintains accurate inventory and equipment records for all school real and personal property in compliance with the Tennessee Internal School Uniform Accounting Policy Manual, 2 C.F.R. Part 200, and all applicable state and federal law. The Director of Operations is responsible for implementing and maintaining these procedures. Physical inventory management is supported by Jonathan Terry at 26 Technologies.

Definitions

- **Equipment** means all items including machinery, implements, tools, furniture, vehicles, and other apparatus with a unit cost of \$5,000 or more and a minimum useful life expectancy of three years. Freight charges and installation costs are included in the cost of equipment.
- **Sensitive minor equipment** means items purchased with a unit cost between \$100 and \$5,000. These items require tracking and tagging per federal requirements even though they fall below the equipment capitalization threshold.
- **Capital assets** are equipment items meeting the \$5,000 threshold. All federally funded capital assets must be tracked in the school's federal equipment inventory with full acquisition and disposition data.

Equipment Procured with Federal Dollars. All equipment and sensitive minor equipment purchased with federal funds must be tracked in the school's inventory database. For each item the following information must be recorded: federal award identification number; serial number or other identifying number; source of funding; titleholder; acquisition date and cost; percentage of federal participation in the project cost; location, use, and condition; and any ultimate disposition data.

Inventory Tracking and Physical Inventory. Invictus conducts a physical inventory of all property at least once every two years, with annual reconciliation required for federally funded assets. Physical inventory is generally performed during the summer by the Director of Operations or designee. The operations team compares the physical inventory checklist against the digital property management system records. Any discrepancies are flagged, investigated, and updated in the system. A final reconciliation report is reviewed and approved by the Director of Operations.

Lost or Stolen Equipment. If equipment is lost or stolen, the Director of Operations must be notified immediately. A police report must be filed when theft is discovered or reasonably suspected. The granting agency must be notified for federally funded items as required by 2 C.F.R. 200.313.

Technology Configuration. All technical configuration of computing devices, including software installation, network setup, and security settings, must be handled by 26 Technologies personnel. The operations team may assist with physical setup and coordination at the campus level.

Disposal of Equipment. Disposal of school equipment follows the procedures in the Property Sales/Disposal Policy in this handbook. For federally funded equipment, prior approval from the granting agency is required, the disposition method must be documented, and records must be retained per the records retention schedule and 2 C.F.R. 200.313(e).

CROSS-REFERENCES Property disposal procedures: Property Sales/Disposal Policy, Section 7 of this handbook.
Federal asset management requirements: INCS Financial Policies and Procedures.

TRAVEL POLICY

AUTHORITY Charter Commission Policies 2804, 2805 · UGG · 2 C.F.R. 200.474 · IRS Publication 463 · GSA CONUS per diem rates

Policy Statement. Invictus Nashville Charter School is committed to cost-effective, safe, and accountable use of school resources for business travel. This policy applies to all employees who travel on school business, regardless of position or department. All travel must serve a legitimate school purpose and must be pre-approved before any arrangements are made.

Pre-Trip Authorization. All business travel requires written pre-approval from the Head of Schools before any travel arrangements are booked. Written requests must be submitted to both the Head of Schools and the Director of Operations and must include the purpose of travel; destination; dates; estimated costs including airfare, lodging, transportation, and meals; and justification for any non-standard arrangements. Employees are expected to initiate the authorization process well in advance, particularly during peak travel seasons.

Booking. The Director of Operations is responsible for booking all airfare, lodging, and rental car reservations. This centralized booking process ensures consistency, leverages any negotiated rates, and maintains appropriate oversight of travel expenditures. Employees must provide the Director of Operations with all necessary information and preferences in a timely manner to allow for advance booking.

Air Travel. Economy class is the required class of air travel for all employees. Business class may be approved for flights exceeding six hours in duration or for employees with a documented medical need, with written justification and Head of Schools approval. Non-refundable tickets should be avoided whenever possible. If purchased, written justification must accompany the travel request.

Ground Transportation. Employees must use the most cost-effective ground transportation option available, including airport shuttles, public transportation, or ride-sharing services. Rental cars may be authorized when justified by the circumstances of the trip. Use of a personal vehicle for business travel requires pre-approval. Mileage reimbursement for approved personal vehicle use will be provided at the current IRS standard mileage rate, which is updated annually. Employees using personal vehicles for trips funded by federal awards must also comply with 2 C.F.R. 200.474.

Lodging. Hotel accommodations must be safe, clean, and conveniently located for the purpose of the trip. Lodging costs should be at or below the applicable GSA CONUS per diem rate for the destination. Use of short-term rental services such as Airbnb may be considered when traveling with other employees, with written justification and advance approval from the Head of Schools.

Meals and Incidentals. A per diem for meals and incidentals will be provided based on the current GSA per diem rate for the destination. Receipts are not required for meal expenses within the per diem allowance. Expenses that exceed the per diem are the responsibility of the employee.

Expense Reporting and Reimbursement. Employees must submit a detailed expense report within 10 business days of completing a trip. Expense reports must include all required receipts and supporting documentation for any expenditure outside the per diem allowance. Employees will be reimbursed for eligible expenses within 30 days of submitting a complete and accurate expense report. Reimbursement will be made by direct deposit or school check. For travel funded in whole or in part by federal awards, expense reports must comply with 2 C.F.R. 200.474. The Director of Operations must pre-approve all federally funded travel and confirm that the traveler's participation is necessary to the federal award.

Combining Business and Personal Travel. Employees may extend an approved business trip for personal reasons at their own expense. The school will reimburse only the cost of the original approved itinerary. The employee is responsible for any increase in airfare due to itinerary changes, all lodging costs during personal days, and all transportation costs during the personal portion of the trip. Employees must use accrued vacation time or unpaid leave for personal days added to a business trip.

Travel Safety. Employees traveling to destinations identified as high-risk must complete a travel risk assessment and any required safety training before departure. Employees must provide emergency contact information to their supervisor and the Director of Operations prior to travel. Invictus will provide reasonable accommodations for employees with disabilities that affect travel. Employees with special travel needs should contact the Director of Operations in advance of trip planning.

Policy Review. This policy will be reviewed annually by the Head of Schools and Director of Operations and updated as needed to reflect changes in IRS mileage rates, GSA per diem rates, or federal grant requirements.

CROSS-REFERENCES Federal grant expenditure requirements: INCS Financial Policies and Procedures. Employee reimbursement procedures: INCS Financial Policies and Procedures.

STUDENT ACTIVITY FUNDS POLICY AND PROCEDURES

AUTHORITY Charter Commission Policy 2900 · Tennessee Internal School Uniform Accounting Policy Manual · T.C.A. 49-2-601 et seq.

Policy Statement. Invictus Nashville Charter School may receive and disburse student activity funds in accordance with the Tennessee Internal School Uniform Accounting Policy Manual. Student activity funds are funds generated by or for students through school events, activities, and fundraising. These funds belong to the students who raised them and must be used for their benefit. The Director of Operations or designated financial officer is accountable for the safekeeping and handling of all student activity funds regardless of the source of the funds or the purpose for which they were raised. Student activity funds must be expended as expeditiously as possible for the benefit of the students who generated them.

Procedures. Invictus manages student activity funds in accordance with the Tennessee Internal School Uniform Accounting Policy Manual, which serves as the governing guide for all accounting, recordkeeping, and disbursement procedures related to these funds. All student activity fund bank accounts are maintained in the school's name. Banks must be promptly notified of any changes to authorized check signers. All checks are pre-numbered and accounted for, including used, voided, and unused checks. Voided checks are properly defaced and retained on file. Bank reconciliations are completed monthly by the Director of Operations or designee.

Student activity funds are maintained separately from all other school funds, including general operating funds, school support organization funds, and federal grant funds. No commingling of fund types is permitted. All disbursements from student activity fund accounts require documented authorization. Expenditures must clearly benefit the students for whom the funds were raised and must comply with applicable state law and Commission policy.

Audit. An annual audit of all student activity fund accounts and records is conducted as part of the school's audit of all other school funds. Audit findings related to student activity funds must be addressed within 90 days of the audit report issuance.

CROSS-REFERENCES School Support Organizations Policy: Section 8 of this handbook. Financial records retention: Records Management Policies section of this handbook. General financial management procedures: INCS Financial Policies and Procedures.

SCHOOL SAFETY AND EMERGENCY RESPONSE PLAN

AUTHORITY Charter Commission Policies 3201, 3202 · Procedure 1016 · T.C.A. 49-6-801 through 818 · SAVE Act

Policy Statement. Invictus Nashville Charter School is committed to maintaining school facilities that are safe and free from hazards to the life and safety of students and staff. Safety is a component of the school's instructional program at all grade levels. All staff members are responsible for reporting current and potential hazards to their immediate supervisor promptly. Supervisors are expected to follow up on all such reports effectively and without delay.

The school's safety program addresses fire prevention, accident prevention, warning systems, emergency drills, traffic safety, safety inspections, first aid, disaster preparation, and a preparedness plan for nuclear or other major emergencies.

Emergency Operations Plan

The comprehensive emergency response framework for Invictus Nashville Charter School is governed by the INCS Emergency Operations Plan, developed and maintained in accordance with the Tennessee SAVE Act (T.C.A. 49-6-801 through 818). The EOP is the authoritative document for all emergency response, physical security, threat assessment, and continuity of operations. The Policy Handbook does not reproduce EOP content.

CONFIDENTIAL DOCUMENT

The EOP is a confidential document exempt from public records requests under T.C.A. 49-6-808. It is maintained by the Director of Operations, reviewed annually by the building-level school safety team, and submitted by July 1 of each year to all local law enforcement agencies with jurisdiction, the Tennessee Department of Education, and the Tennessee Department of Safety. A distribution log of all individuals and agencies holding copies of the EOP is maintained by the Director of Operations.

Building-Level School Safety Team. A building-level school safety team is appointed annually by the Head of Schools and includes all members required by law, including a local law enforcement official. The safety team conducts an annual review of the EOP and all related safety plans and updates them as needed. Meetings of the school safety team concerning school security or safety plans are not subject to the open meetings law, though reasonable public notice of any such meeting is provided in advance.

Emergency Drills. Invictus conducts emergency drills in accordance with the SAVE Act and TPCSC LEA Policy 3202. The required drill schedule is established in the EOP and includes at minimum fire drills conducted at least once per month, tornado drills conducted at least twice

per year, and armed intruder drills conducted in accordance with state requirements. Drill records are retained for a minimum of five years per T.C.A. 49-6-807 and the records retention schedule in this handbook.

Firearm Policy. Invictus Nashville Charter School is a gun-free school zone. Possession of a firearm on school property is prohibited for all employees, students, families, and guests, consistent with the Gun-Free Schools Act and T.C.A. 39-17-1309.

Confidentiality of Safety Plans. All school emergency response plans are confidential and are not subject to public or open records requirements, except that Invictus will provide school security plans, information, and records to a local law enforcement agency with jurisdiction, the Tennessee Department of Education, or the Tennessee Department of Safety upon request. Any public records request that seeks EOP materials will be declined by the Public Records Request Coordinator, Jonathan Salls, who will notify the requestor of the exemption under T.C.A. 49-6-808.

CROSS-REFERENCES Full emergency response framework: INCS Emergency Operations Plan (confidential). Drill schedule and procedures: EOP Appendix H; TPCSC Procedure 1016. Drill records retention: Records Management Policies section of this handbook.

SERVICE ANIMAL POLICY

AUTHORITY Charter Commission Policy 3218 · Americans with Disabilities Act · 28 C.F.R. Part 35

Policy Statement. In accordance with the Americans with Disabilities Act, service dogs and trained miniature horses are permitted for use by individuals with disabilities on Invictus Nashville Charter School property and in all school facilities, provided the individual and animal meet the requirements of this policy.

Permissible Inquiries. When an individual with a disability seeks to bring a service animal into an Invictus facility, school staff may ask only two questions: whether the animal is required because of a disability, and what work or task the animal has been trained to perform. Staff may not ask for documentation that the animal has been trained, require the animal to demonstrate its task, or inquire about the nature or extent of the individual's disability.

Permitted Tasks. A service animal must have been trained to do work or perform tasks directly related to the handler's disability. Examples include guiding individuals who are blind or have low vision, alerting individuals who are deaf or hard of hearing, providing non-violent protection, pulling a wheelchair, assisting during a seizure, alerting to the presence of allergens, retrieving items such as medicine, providing physical support and stability, and helping individuals with psychiatric or neurological disabilities by preventing or interrupting impulsive or destructive behaviors. The crime deterrent effect of an animal's presence and the provision of emotional support, comfort, or companionship do not constitute work or tasks under this policy.

Access. Individuals with disabilities are permitted to be accompanied by their service animals in all areas of Invictus facilities where members of the public, participants in programs and activities, and invitees are allowed to go.

Control Requirements. A service animal must be under the control of its handler at all times. A service animal must have a harness, leash, or other tether unless the handler is unable to use one because of a disability, or unless the tether would interfere with the animal's safe and effective performance of its task, in which case the animal must be under the handler's control through voice commands, signals, or other effective means.

Removal of a Service Animal. Staff may ask an individual with a disability to remove a service animal from an Invictus facility if the animal is out of control and the handler does not take effective action to control it, the animal is not housebroken, or the animal's presence would fundamentally alter the nature of the program or activity. If a service animal is excluded, Invictus will give the individual the opportunity to participate in the program or activity without the service animal.

No Surcharges. Invictus will not impose any surcharge on an individual with a disability for bringing a service animal onto school property. Invictus staff are not responsible for the care or supervision of a service animal.

POLICY 14 OPERATIONS & TRANSPORTATION

TRANSPORTATION POLICY

AUTHORITY Charter Commission Policy 3400 · Procedure 1023 · T.C.A. 49-6-2101 et seq. · T.C.A. 49-10-113

Policy Statement. Invictus Nashville Charter School provides transportation in accordance with its charter agreement and state law. Transportation will be provided to any student whose Individualized Education Program requires it. At the time a student enrolls, the school will provide the parent or guardian with information regarding available transportation services.

Jonathan Salls

Director of Operations · Transportation Supervisor

Telephone: 615-378-5490 · jsalls@invictus-nash.org

The transportation supervisor must complete a student transportation management training program upon appointment and must complete a minimum of four hours of continuing training annually. The Head of Schools ensures that training is completed and provides the Tennessee Department of Education with required documentation.

Bus Regulations. Invictus operates transportation in compliance with all statutory and regulatory requirements. No school bus will be operated unless it is insured for liability and property damage in accordance with State Board rules. All school buses must be approved under State Board rule 0520-01-05-.02, must meet Tennessee Minimum School Bus Standards, and must comply with all applicable federal motor vehicle safety standards. Buses transporting students with disabilities will include appropriate equipment modifications as required. All buses are inspected, maintained, serviced, and operated in accordance with state law and State Board rules.

All school bus accidents must be reported to the Commission's transportation supervisor immediately. Accidents involving pupil injury or fatality are reported by telephone within 24 hours and by written report within 10 days using the Department's School Bus Accident Report Form. Property damage accidents are reported at the end of the school year on the Annual Pupil Transportation Report.

Bus Drivers. School bus drivers are selected and hired in accordance with state law. Bus driver certificates are issued in accordance with state law and Commission transportation procedures. Bus drivers may not have a criminal record involving driving under the influence, vehicular assault, vehicular homicide, aggravated vehicular homicide, or controlled substance offenses as defined by applicable Tennessee law.

Transportation of Students

Before each school year begins, and upon hire of any bus driver during the school year, Invictus ensures that every driver knows and understands the school's transportation policies and procedures.

Students may only exit the bus at their designated stop. No driver may permit a student to exit at any other location. There are no exceptions based on a note from a parent or guardian.

At each stop, the driver will release a student only to an adult who is listed on the student's authorized release list. The driver must verify the identity of the person receiving the student. If no authorized adult is present at the stop, the student will not exit the bus and will be returned to school. School staff will contact the parent or guardian immediately upon the student's return.

PRE-K STUDENTS

For Pre-K students, this requirement is mandatory under Child Care Standards 0520-12-01-.13(18)(c). A Pre-K student may not be left at a home or bus stop unless a parent or other authorized person is present. If no authorized person is present, the student remains on the bus and the driver follows school return procedures.

Drivers must report to the Head of Schools or designee, no later than the end of the route, any student who refused to obey the driver or who exited the bus without permission. A driver who permits an unauthorized exit is subject to an immediate fitness-to-drive review.

No student may be in transit on a school bus more than one and one-half hours in the morning or one and one-half hours in the afternoon. No bus may transport more students than the manufacturer's rated seating capacity, with a minimum of thirteen linear inches of seat space per student.

Safety on School Buses. A notice that only persons authorized by Invictus may board school buses must be posted conspicuously on each bus, along with appropriate contact information for reporting issues. Each bus must be equipped with a complaint phone number on the rear bumper that connects directly to the school.

Complaint Process

All bus safety complaints are submitted to the transportation supervisor by phone, email, in person, or by mail. The transportation supervisor must begin an investigation within 24 hours of receiving a complaint. Within 48 hours of receipt, the transportation supervisor submits a preliminary report to the Charter Commission's Director of Schools. Within 60 school days of receiving the complaint, the transportation supervisor submits a final written report to the Commission's Director of Schools detailing the investigation's findings and the action taken. Annual notice of this complaint process is provided to parents and students and included in the Student and Family Handbook.

Record Keeping. The transportation supervisor maintains the following records: bus maintenance and inspection forms; bus driver credentials including background checks, health records, and performance reviews; driver training records; and all complaints received

and records related to complaint investigations.

CROSS-REFERENCES Transportation for students with disabilities: Special Education, Child Find, and Referral Procedures section of this handbook. Transportation for students experiencing homelessness: Students Experiencing Homelessness Policy section of this handbook. Transportation for students in foster care: Foster Student Policy section of this handbook.

IDENTIFICATION OF EL STUDENTS & TRANSLATION AND INTERPRETATION SERVICES

AUTHORITY Charter Commission Policies 4207, 4502 · Procedure 1005 · Title VI, Civil Rights Act of 1964 · Executive Order 13166 · Title III ESSA · TN SBE Rule 0520-01-19

Policy Statement. If the inability to speak, read, write, or understand English excludes a student from meaningful participation in the educational programs offered by Invictus Nashville Charter School, the school will take reasonable actions to provide that student equal access to its programs. Students who are English learners will be identified, assessed, and provided appropriate services. No child will be admitted to or excluded from any program or extracurricular activity based on surname or EL status.

English learners are non-English language background students whose level of oral, reading, and written proficiency in English does not allow them to fully benefit from the curriculum and creates difficulty in the regular classroom without specifically designed modifications.

Stacey Jones

Special Populations Coordinator · EL Coordinator

2526 Lebanon Pike, Nashville, TN 37214 · Telephone: 615-378-5490

sjones@invictus-nash.org

The EL Coordinator serves as the contact between the Commission and the school for all EL compliance matters and is responsible for completing the relevant sections of the school's annual Subrecipient Monitoring Self-Assessment.

ESL Teacher Qualifications and Staffing. All teachers of any language instruction program for English learners must be fluent and competent in the four domains of language assessed by the English Language Proficiency Assessment: reading, writing, speaking, and listening. Invictus maintains a ratio of one full-time equivalent ESL-endorsed teacher to 35 English learner students.

Identification and Screening

EL student identification must be completed within 30 days of initial enrollment using the following two-step process.

1

Home Language Survey

Invictus administers a Home Language Survey to identify NELB students. The HLS is administered once in a student's educational career at the time of enrollment. If the original HLS cannot be obtained, a secondary survey must be administered and labeled as such.

2 ELPA21 Dynamic Screener

If a student is referred for screening after the HLS, Invictus administers the ELPA21 Dynamic Screener in reading, writing, listening, and speaking. The Screener must be administered by a certified ESL teacher trained to administer it within the past calendar year. NELB students with documentation from a previous state or district confirming Fluent English Proficient status on the ELPA21 Dynamic Screener do not need to be re-screened.

Students in grades K–8 who require alternate assessments or cannot access the ELPA21 Dynamic Screener due to a suspected disability are screened using the Alt ELPA Screener in receptive and productive modalities. Students are classified as English learners if they score below a three in any non-exempt modality. If an IEP student is also an NELB student, the IEP team may exempt the student from domains that are inaccessible due to the student's disability. Invictus may contract with an outside provider to screen incoming students. Where contracted screening is used, Invictus maintains responsibility for obtaining and filing complete screening information.

Obtaining Student Records. Upon enrollment, Invictus immediately requests the student's records from the previous school. For EL, transitional, and NELB students, the school determines whether the child received ESL services from the previous district by asking the parent or guardian, reviewing registration documents, and contacting the student's last known school or district. The EL Coordinator requests transfer of the student's documents in TN Pulse by emailing the district EL Coordinator with the student's name, date of birth, prior district, and state ID number via encrypted email or password-protected document.

Individual Learning Plans. Every EL student who receives Direct or Indirect ESL Services must have an Individual Learning Plan that includes initial English Language Proficiency screener data and relevant assessment data; relevant demographic data including years of ESL service, Long Term English Learner status, and additional services; short-term goals in reading, writing, speaking, and listening; growth trajectories for English language proficiency; strategies, accommodations, and scaffolding for Indirect ESL Services; and for K–3 students, language-focused supports providing access to instruction aligned to grade-level standards. The EL Coordinator audits all ILP files within the first month of each school year. Quarterly monitoring documents are added within two weeks of the end of each quarter.

Maintenance of Documentation in TN Pulse. Invictus completes, uploads, and maintains all required documentation for NELB, active EL, waived, and Transitional Year 1 and 2 students in TN Pulse. EL student data is verified for accuracy in PowerSchool/EIS at least monthly.

Parental Notification. Invictus notifies parents and guardians of a student's eligibility for ESL services after initial assessment and annually thereafter. Notifications include all information required by Commission Enrollment Procedures and are provided in a language the family understands.

Reclassification. Students are reclassified as Fluent English Proficient based on performance on the state's annual English Language Proficiency assessment and additional criteria consistent with TN SBE Rule 0520–01–19. Transitional students in Years 1 and 2 continue to receive monitoring.

Translation and Interpretation Services

Charter Commission Policies 4207, 4502; Title VI; Executive Order 13166; Title III ESSA. Invictus Nashville Charter School is committed to ensuring meaningful communication with all students and families regardless of the language they speak at home. No student or family will be excluded from participation in, denied the benefits of, or subjected to discrimination in any school program or activity because of a language barrier.

Definitions

- **Translation** is the conversion of written text from one language to another.
- **Interpretation** is the oral conversion of spoken communication from one language to another in real time.
- **Limited English Proficiency (LEP)** refers to individuals who do not speak English as their primary language and have a limited ability to read, speak, write, or understand English at a level that permits meaningful participation in school activities.

Written Translation. The following documents will be translated into the primary language of INCS families upon request, and proactively when a significant LEP population is identified: the Student and Family Handbook; enrollment and registration forms; IEP and 504 plan documents; EL identification and service notification letters; discipline notices and hearing notifications; report cards and academic progress communications; emergency notifications; the Parent and Family Engagement Policy; and any other document the school determines is vital to family participation. Families may request written translation by contacting the front office in person, by phone at 615-378-5490, or by email at info@invictus-nash.org. The school will acknowledge the request within two school days and complete translation within ten school days. Machine translation tools may be used only for informal, non-vital communications and may not be used for official documents, legal notices, IEP documents, or discipline records without review by a qualified human translator.

Oral Interpretation. Invictus provides oral interpretation at no cost to families for parent-teacher conferences, IEP, 504, and EL team meetings, enrollment and intake interviews, discipline conferences and hearings, safety and emergency communications, and any meeting where the family requests interpretation. The school will confirm interpretation arrangements at least two school days before the meeting when possible.

PROHIBITION ON STUDENT INTERPRETERS

Invictus does not rely on students, children, or other family members to interpret or translate for LEP families, except in emergency situations where no qualified interpreter is immediately available and delay would cause serious harm. This prohibition applies in all settings including enrollment, academic conferences, IEP meetings, discipline hearings, and all general school communications.

Identification of LEP Families. LEP families are identified through the Home Language Survey administered at enrollment, front office staff assessment during enrollment and registration, teacher and staff referrals, and family self-identification. Upon identification, the Director of

Operations notes the primary language in PowerSchool and ensures language support is flagged for all future communications.

Staff Responsibilities. The EL Coordinator holds overall responsibility for language access compliance, coordinates translation and interpretation resources, and maintains documentation of all language access activities. Front office staff serve as the first point of contact for LEP families. Classroom teachers and staff notify the front office or Director of Operations when a language barrier is identified and do not rely on students to interpret. The Head of Schools ensures annual staff training on this policy and oversees compliance with Commission monitoring requirements.

Documentation. The Director of Operations maintains a log of all interpretation requests, translation requests, translated documents, and any emergency situations where a minor was used as an interpreter. Documentation is available for review during Commission sub-recipient monitoring and annual policy review.

Staff Training. Invictus provides annual training to all staff covering how to identify LEP families, how to request interpretation and translation services, the prohibition on student interpreters, legal obligations under Title VI and Executive Order 13166, and how to access telephone or video remote interpretation for unexpected language needs.

Notice to Families. Invictus informs LEP families of available language assistance services through the Student and Family Handbook, signage in the front office in the primary languages represented in the school community, the enrollment process, and the TPCSC Student Handbook Addendum.

CROSS-REFERENCES EL student services and ILP requirements: TN SBE Rule 0520-01-19; Commission Procedure 1005. Parent and family engagement obligations: Parent and Family Engagement Policy section of this handbook. FERPA and student record confidentiality: Records Management Policies section of this handbook.

INSTRUCTIONAL MATERIALS POLICY AND PROCEDURE

AUTHORITY Charter Commission Policy 4400 · T.C.A. 49-6-3801 et seq. · TN DOE Rule 0520-12-04

Policy Statement. Invictus Nashville Charter School provides instructional materials that support the school's educational mission, align with Tennessee Academic Standards, and are appropriate for the age and maturity of students. All instructional materials must comply with state law and Tennessee Department of Education Rule 0520-12-04.

Prohibited Concepts. Employees of Invictus may not include or promote any concepts that would violate state law when providing instruction, using instructional or supplemental materials, or when implementing the instructional program and curriculum, as detailed by TN DOE Rule 0520-12-04. The Prohibited Concepts Complaint Form, as developed by the Tennessee Department of Education, is posted on the school website.

Parent Review of Materials. Parents and guardians of any student are entitled to review all instructional materials, teaching materials including handouts, textbooks, and teaching aids used in their child's classroom. For purposes of this policy, instructional materials include all instructional content provided to students regardless of format, including printed, representational, audio-visual, electronic, and digital materials. Parents and guardians may also review tests developed and graded by their child's teacher.

Complaint Procedure

Complaints regarding prohibited concepts must be submitted using the Prohibited Concepts Complaint Form posted on the school website. Upon receipt of a complaint, the Head of Schools or designee will log and save the complaint and determine the nature of the concern; review all disputed instructional materials for alignment with state law, State Board rules, and school policy; communicate the determination to all involved parties; and record the resolution, communications, and next steps for any necessary corrective action. The school will respond to all complaints within 60 calendar days of receipt. If the school fails to make a determination within 60 days, the person who submitted the complaint may request the State Textbook and Instructional Materials Quality Commission to evaluate the matter.

Library Procedures

Library Procedures. Invictus maintains library materials that comply with T.C.A. 49-6-3803(a)-(b). A current list of all materials in the school's library collection is maintained and posted on the school website.

Library Development Procedure. Invictus compiles library resources in accordance with state law that support the school's mission and are appropriate for the age and maturity of students.

FILL BEFORE DISTRIBUTION

Describe library structure: one library, classroom libraries, or both; who orders books; who reviews and approves materials before addition to the collection.

Library Feedback Procedure. Any student, parent, guardian, or employee may submit feedback on library materials using the form linked on the school website. The Head of Schools or designee will review all submitted feedback and evaluate whether any action is needed. The school will respond to all library feedback within 60 calendar days of receipt.

Periodic Library Review Procedure. The Head of Schools or designee reviews the full list of library materials annually to determine whether materials are suitable for and consistent with the educational mission of the school. Materials determined to be unsuitable are removed from the collection.

POLICY 17 TECHNOLOGY

INTERNET SAFETY AND ACCEPTABLE USE OF TECHNOLOGY POLICY

AUTHORITY Charter Commission Policies 4406, 4213 · Children's Internet Protection Act (CIPA) · 20 U.S.C. 6777 · TPCSC LEA Policy 4213

Policy Statement. The use of technology resources by students, staff, or visitors to Invictus Nashville Charter School is a privilege subject to all applicable state and federal laws and school policies. This policy governs student and employee use of school technology including internet access, school-issued devices, school networks, email, and all digital platforms used in connection with school activities.

Student Acceptable Use of Technology

Technology at Invictus is integrated into the curriculum to enhance learning in ways consistent with the school's Montessori approach. Students have access to technology as a supplemental resource primarily for research, enrichment, and skill-building. Pre-K through Kindergarten students have access to iPads as a supplemental learning resource. Students in grade 1 and above use Chromebooks. Devices are shared resources, not issued on a one-to-one basis. Families will be asked to sign a Technology and Device Agreement at the start of each school year.

Internet access is provided to all Invictus students for educational purposes. Students are responsible for the ethical and appropriate use of all technology resources. Students must refrain from the following prohibited activities: sending or displaying offensive messages or images; using obscene language; harassing, insulting, defaming, or attacking others; damaging computers, computer systems, or networks; hacking or attempting unauthorized access; violating copyright law; accessing another person's files without permission; intentional misuse of resources; using another person's password or identity; using school networks for commercial purposes; and buying or selling on the internet.

Violations of this policy may result in loss of technology privileges, disciplinary consequences consistent with the Student Discipline Policy in this handbook, and where applicable, referral to law enforcement.

Employee Acceptable Use of Technology

School technology systems are for professional use supporting instruction, communication, and school operations. All activity conducted on school-issued devices, networks, email accounts, internet services, and communication platforms is school property and may be monitored, accessed, reviewed, or retained by Invictus at any time, with or without notice, to the extent permitted by law. Employees have no expectation of personal privacy when using Invictus technology resources.

Employees may not use school technology for the following prohibited purposes: sending, storing, or sharing harassing, discriminatory, or offensive content; downloading, viewing, or distributing sexually explicit material; using unlicensed or pirated software; attempting to access systems, accounts, or files without authorization; sharing passwords or failing to safeguard login credentials; uploading malicious software or code; circumventing school security systems or monitoring tools; or using school technology in ways that violate law or school policy.

Social Media. Employees represent Invictus Nashville Charter School in all public communications. Social media activity that references students, families, colleagues, or school operations must comply with FERPA, school privacy expectations, and the Employee Handbook conduct standards. Employees may not post images, videos, or identifying information about students without proper authorization consistent with FERPA and the school's media release procedures.

Recording, Photography, and Media. All recordings of students for instructional documentation or school communications must use authorized school platforms and procedures.

Artificial Intelligence Use Policy

Charter Commission LEA Policy 4213, adopted 2026–27. Invictus Nashville Charter School has adopted an Artificial Intelligence Use Policy governing how students and staff may use AI tools in connection with school work, activities, and operations.

Definitions

- **Artificial Intelligence (AI) tools** are software systems that generate text, images, audio, code, or other content in response to user inputs, or that analyze and make decisions based on data. This includes but is not limited to generative AI tools, large language models, AI-powered writing assistants, image generators, and automated content creation platforms.

Student Use. Students may use AI tools only when explicitly authorized by their teacher for a specific assignment or task. Unauthorized use of AI to complete work that the student is expected to produce independently constitutes academic dishonesty and is subject to consequences under the Student Discipline Policy in this handbook. When AI use is authorized, students must disclose it in their work in the manner directed by the teacher.

Staff Use. Staff may use AI tools to support instructional planning, administrative tasks, communication drafting, and professional development. Staff may not use AI tools to generate student evaluations, IEP content, or legally required documents without meaningful human review and professional judgment. Staff must ensure that no personally identifiable student information is entered into any AI tool not approved by the school. Staff must disclose AI-assisted work product when submitting it for official school purposes.

Prohibited Uses. Neither students nor staff may use AI tools to generate content that is deceptive, harassing, or harmful; circumvent academic integrity expectations; produce or distribute discriminatory, obscene, or otherwise prohibited content; or process student data in tools not approved for that purpose by the Director of Operations.

Privacy and Data. Before using any AI tool in a school context, staff must confirm with the Director of Operations that the tool does not collect or store student personally identifiable information in a manner that violates FERPA or school data privacy obligations. Students may not enter any personally identifiable information about themselves or others into AI tools.

Review and Training. The Head of Schools will review this policy annually and update it as AI technology and applicable guidance evolve. Staff will receive training on appropriate AI use, academic integrity expectations, and data privacy obligations related to AI tools as part of annual professional development. By July 1 of each year, the Invictus governing board shall report to the Department of Education on compliance with T.C.A. 49-2-203(a)(16). The report must include the adopted policy and describe how the board will enforce the policy in the upcoming school year.

CROSS-REFERENCES Student discipline for technology violations: Student Discipline Policy section of this handbook. Employee technology obligations: Employee Handbook, Section 5. Device management and inventory: Inventory and Equipment Policies section of this handbook. FERPA and student data privacy: Records Management Policies section of this handbook.

PARENT AND FAMILY ENGAGEMENT POLICY

AUTHORITY Charter Commission Policy 4502 · ESSA Title I, Part A · 20 U.S.C. 6318

Policy Statement. Invictus Nashville Charter School recognizes the importance and value of meaningful parent and family involvement and is committed to establishing effective strategies and partnerships to engage parents and families in the design, review, and implementation of the educational program. Invictus creates a welcoming environment for all families and implements policies that encourage parent participation in the education of their children.

This policy is jointly developed with parent representatives from the school planning team and is reviewed annually. It is shared with all families at enrollment, during family orientation, through the Student and Family Handbook, and on the school website in a format and language families can understand.

- 1 Grievance and Complaint Policy.** Invictus's informal and formal grievance and complaint procedures are available to all students and families through the annual distribution of the Student and Family Handbook and are set forth fully in the Grievance and Complaint Policy in this handbook.
- 2 Report Cards, Progress Reports, and Notices of Concern.** At the beginning of each academic year, Invictus communicates to all parents and guardians the schedule for report cards, progress reports, and notices of concern. Parents and guardians may discuss their student's progress at either of the two scheduled parent-teacher conferences or by requesting a conference at any time. Invictus is obligated to honor all reasonable conference requests.
- 3 Parent-Teacher Conferences.** Invictus hosts two scheduled parent-teacher conferences each school year, one in the fall and one in the spring. Additional conferences may be arranged at any time by parents, guardians, teachers, or school leadership. To protect instructional time, families should contact the school by phone or email to schedule any conference rather than approaching teachers at the classroom door during instructional hours.
- 4 Homework Policy.** Invictus communicates its homework expectations to families at the beginning of each school year through the Student and Family Handbook and at family orientation. Homework expectations are consistent with the school's Montessori approach and are designed to reinforce classroom learning rather than replace it.
- 5 Parent Involvement Committee and School Planning Team.** Invictus maintains a parent representative on the governing board and a Parent Advisory Committee. Both satisfy the Tennessee law requirement under applicable state law. The school planning team includes the parent board member and PAC representatives. The PAC participates in the

development, review, and evaluation of the parent and family engagement policy and provides input on Title I fund usage.

- 6 Volunteer Program.** Invictus welcomes parent and family volunteers. All volunteers with direct student access must complete the school's visitor and volunteer check-in procedures and applicable background screening requirements consistent with school policy. Volunteer opportunities are communicated through school newsletters, family orientation, and the school website.
- 7 Annual Title I Parent Meeting.** Within the first two weeks of each school year, Invictus sends a letter to all families communicating the school's Title I status and announcing the date, time, and location of the annual Title I parent meeting. At the meeting, Invictus shares information about its Title I status, the amount of Title I funds received, and how those funds are being used to support student achievement. Families have an opportunity to provide input on the use of Title I funds.
- 8 Serving Non-English-Speaking Families.** During enrollment, all families with limited English proficiency are identified. Invictus honors all family requests regarding the language of official school correspondence. Translation and interpretation services are provided in accordance with the Translation and Interpretation Services policy in this handbook. The Student and Family Handbook is available in English and Spanish, with additional translations provided as needed.
- 9 Annual Notice of Parent and Family Engagement Policy.** At the start of each school year, Invictus shares this policy with all families in a format and language they can understand. The policy is distributed at enrollment meetings, family orientation, and the first school planning team meeting, and is sent home with each student. It is also posted on the school website and made available upon request throughout the year.
- 10 Student and Family Handbook.** The Student and Family Handbook is shared with families at enrollment and family orientation and is sent home with each student at the beginning of the school year. Families may request a printed copy at any time. The handbook is posted on the school website at www.invictus-nash.org.
- 11 Evaluating Parent and Family Engagement Effectiveness.** The school planning team and Parent Advisory Committee review and evaluate the effectiveness of this policy throughout the school year. Evaluation focuses on reducing barriers to family participation, addressing the needs of parents and family members in supporting their children's education, and identifying the best strategies for successful school and family partnerships. This policy may be amended at any time to better meet the needs of students and families.

VISITOR CODE OF CONDUCT

AUTHORITY Charter Commission Policy 4502 · TPCSC LEA Policy 4502

Policy Statement. Invictus Nashville Charter School welcomes families and community members and is committed to maintaining conditions that support safe and productive learning. All visitors to school property are expected to conduct themselves with respect for students, staff, and the school environment.

Check-In Procedures. Except during school programs, athletic events, open house, and similar public events, all visitors must report to the school office upon entering the building and sign in. Guest passes are issued to all persons other than students and employees. Authorization to visit other areas of the building is determined by the Head of Schools or designee. All visitors must use the Raptor Visitor Management System check-in at the main entrance. No visitor may bypass the front office check-in process.

No person other than students assigned to the school, school staff, parents or guardians of enrolled students, and others with lawful and valid business on the premises may enter school grounds or buildings during student instructional hours.

Visitor Conduct Standards. All persons on school property are under the jurisdiction of the Head of Schools or designee and are expected to behave in a manner that supports the school's educational environment. The following conduct is prohibited: cursing, use of obscenities, or other discriminatory or harassing language; disrespecting any student, employee, or the property of any student, employee, or the school; disrupting or threatening to disrupt school or office operations; acting in an unsafe manner that could threaten the health or safety of others; making verbal or written statements or gestures indicating intent to harm an individual or property; and any physical attack intended to harm an individual or substantially damage property.

The Visitor Code of Conduct is posted on the school website, provided to all school employees, and posted prominently at the main entrance of the school. Parents and guardians receive a copy annually through the Student and Family Handbook and must sign an acknowledgment confirming they have read and understood it.

Consequences for Conduct Violations. The Head of Schools or designee has the authority to exclude from school premises any person who disrupts educational programs, disturbs teachers or students, or is present for the purpose of committing an illegal act. Visitors whose conduct disrupts the safe and orderly operation of school facilities may be required to obtain advance permission before returning to school property or may be permanently banned from Invictus facilities and school events. The Head of Schools will contact law enforcement when the situation warrants it.

CROSS-REFERENCES Registered sex offender access restrictions: Registered Sex Offender Policy, Section 6 of this handbook. Visitor entry and Raptor system procedures: INCS Emergency Operations Plan.

PROMOTION AND RETENTION POLICY

AUTHORITY Charter Commission Policies 4603, 6200 · T.C.A. 49-6-3115 · TPCSC LEA Policy 4603

Policy Statement. The Head of Schools or designee shall promote students to the next grade level based on the successful completion of required academic work and satisfactory progress in each relevant academic area. No student enrolled in the third grade shall be promoted without meeting the requirements or exemptions outlined below. Students who have difficulty achieving the requirements for promotion may be considered for retention. Factors used to identify students who may be considered for retention include at minimum the student's ability to perform at current grade level standards; results of local or state assessments, screening, or monitoring tools; Home Literacy Reports provided in accordance with T.C.A. 49-1-905; overall academic achievement; the student's likelihood for success with more difficult material if promoted; attendance; and social and emotional maturity.

Invictus shall identify students demonstrating difficulty achieving promotion requirements by February 1. When a student is considered for retention, the student's parent or guardian shall be notified within fifteen days, and an individualized promotion plan shall be developed to help the student avoid retention.

Individualized Promotion Plan Procedures. The individualized promotion plan shall be developed in coordination with the student's teachers and may include input from the student's parents or guardians, school counselor, or other appropriate school personnel. The plan shall be provided to the student's parent or guardian, and the school shall offer to hold a parent-teacher conference to discuss it. A student who demonstrates sufficient progress with the plan's strategies during the school year shall be promoted and enrolled in a summer reading or learning program if one is available.

Invictus shall notify parents and guardians of all students in grades three and four of promotion and retention requirements at the beginning of each school year. If a student has not demonstrated sufficient progress by the end of the school year to be promoted, the student shall be enrolled in a summer reading or learning program if available. If enrolled in a summer program, a retention decision may be made after completion of the program but must be communicated to the parent or guardian at least ten days prior to the start of the next school year. If not enrolled in a summer program, the retention decision must be communicated at least thirty days prior to the start of the next school year. Parents and guardians shall be notified of their right to appeal a retention decision.

K-3 READING NOTIFICATION

If it is determined through a student's overall performance or a state or local assessment that a student in grades kindergarten through three is not meeting grade-level standards in reading, the student's parent or guardian shall be notified within fifteen calendar days of that determination. A student shall not be retained under this policy due to limited English proficiency or due to an identified or suspected disability that impacts reading or literacy development.

Third Grade Promotion — TCAP ELA Determinations

On Track or Mastered. No third-grade student shall be promoted to the next grade level unless determined to be proficient in English Language Arts based on achieving a performance level of on track or mastered on the ELA portion of the most recent TCAP test. A parent or guardian identified for retention under this provision may appeal directly to the Tennessee Department of Education. A parent or guardian may provide written consent for a school principal, guidance counselor, teacher, or other administrator to file an appeal on the parent's or guardian's behalf. Invictus shall fully inform the parent or guardian of all pathways to fourth grade promotion before any consent form is signed.

Approaching on TCAP ELA — Promotion Pathways

A third-grade student who achieves approaching on the ELA portion of the TCAP test may be promoted via one of the following pathways:

- **Pathway 1.** The student is an English learner and has received less than two full school years of ELA instruction.
- **Pathway 2.** The student was previously retained in any grade kindergarten through three.
- **Pathway 3.** The student is retested in accordance with Department guidelines before beginning the next school year and scores proficient in ELA.
- **Pathway 4.** The student attends a learning loss bridge camp before the beginning of the upcoming school year, maintains a ninety percent attendance rate at the camp, and performance on the post-test demonstrates adequate growth as determined by the Department of Education.
- **Pathway 5.** The student is assigned a high-dosage, low-ratio TN ALL Corps tutor for the entirety of the upcoming school year, or the student demonstrates proficiency based on scoring within the fiftieth percentile on the most recently administered state-provided benchmark assessment administered in a test environment, and Invictus agrees to provide tutoring services for the entirety of the student's fourth grade year based on Department requirements.

Below on TCAP ELA — Promotion Pathways

A third-grade student achieving below on the ELA portion of the TCAP test may be promoted via the following pathways:

- **Pathway 1.** The student is an English learner and has received less than two full school years of ELA instruction.
- **Pathway 2.** The student was previously retained in any grade kindergarten through three.
- **Pathway 3.** The student is retested in accordance with Department guidelines before beginning the next school year and scores proficient in ELA.

- **Pathway 4.** The student attends a learning loss bridge camp before the beginning of the upcoming school year, maintains a ninety percent attendance rate, receives high-dosage, low-ratio tutoring from a TN ALL Corps tutor for the entirety of the upcoming school year, and the tutoring meets the requirements of TRR/MS 0520-01-03-.16(7).

A student promoted to fourth grade via Approaching Pathway 5 or Below Pathway 4 must show adequate growth on the fourth grade ELA portion of the TCAP test, as defined in State Board of Education Policy 3.300, before being promoted to fifth grade. A student shall not be retained in fourth grade more than once.

Retention

A student may be retained when, in the judgment of the student's teacher or IEP team, such retention is in the student's best interest. A student shall not be retained more than once in any grade. Retention shall not be used without an academic remediation plan with strategies and enhancements different from the previous year, shall not be used as a punitive or disciplinary measure, and shall not be based solely on the student's social and emotional maturity. Retention of EL students shall not be based solely on English language proficiency and shall comply with Commission Policy 4207.

If a student is retained, the Head of Schools or designee shall develop an individualized academic remediation plan prior to the start of the next school year. A copy of the plan shall be provided to the student's parent or guardian within ten days of its development. The plan shall include at least one of the following strategies: adjustment to current instructional strategies or materials; additional instructional time; individual tutoring outside of school hours; modification of the student's classroom assignment to ensure instruction from a highly effective teacher; or attendance or truancy interventions.

Retention Procedures. Recordkeeping. Invictus implements procedures to ensure appropriate recordkeeping for all retained students. Documentation of all academic information including report cards, progress reports, and parent-teacher conferences is filed in the student's cumulative folder. All correspondence with the family is recorded and filed. **Monitoring.** Families of students in danger of retention will meet with the school at least three times before a formal retention meeting. At each meeting the school communicates the student's academic progress and attendance data. Students receive at least three reports beyond their report card summarizing academic progress during the year of retention. **Reporting Progress.** Invictus reports progress to parents or guardians at least three times during the school year of retention.

Reporting. Invictus shall report to the Commission via the reporting calendar the number of students identified for mandatory third grade retention who were promoted pursuant to T.C.A. 49-6-3115(a)(2)(A)(vi); the provider, format, and frequency of tutoring services provided to fourth grade students promoted under that provision; the percentage of such students who demonstrated growth or proficiency in ELA after tutoring; the number who enrolled in a learning loss bridge camp; and the percentage of those students who demonstrated growth or proficiency at the conclusion of the camp.

EL Student Retention Considerations

Retention of EL students shall not be based on the consequences of low English proficiency. Invictus will seek approval from the Commission before retaining an EL student.

Students in Grades K–2 and 4–8. If an EL student in grades K-2 or 4-8 is considered for retention, the school shall notify the EL Coordinator and the student's parent or guardian within fifteen days and shall develop an individualized promotion plan and offer to meet with the parent or guardian. If the student has not demonstrated sufficient progress by the end of the school year, a consultation shall be made with the EL Coordinator to determine whether retention is appropriate. Invictus shall use the Commission's Considerations for Retention of an EL Student form.

Students in Grade 3. If an EL student in grade 3 is considered for retention under T.C.A. 49-6-3115, the school shall notify the EL Coordinator and the student's parent or guardian. Invictus shall submit the English Learner Third Grade Retention Decision form to the EL Coordinator by July 1.

Grading

Invictus uses a curriculum and standards-based system for tracking student learning consistent with its Montessori approach. Invictus does not assign conventional letter grades to younger children in Montessori classrooms. In some courses for older students, letter grades may be given to provide clearer feedback to families about effort and progress toward mastery of state standards.

LETTER GRADE	PERCENTAGE RANGE
A	90 – 100 percent
B	80 – 89 percent
C	70 – 79 percent
D	60 – 69 percent
F	0 – 59 percent

Parents periodically receive report cards indicating what students are working on and have mastered, as well as attendance and behavior records and standardized test scores. For students transferring to another school, Invictus provides detailed academic progress information. The receiving school determines what conventional letter grade, if any, corresponds to student mastery. For students transferring into Invictus, progress reports and report cards reflect only work completed at Invictus.

CROSS-REFERENCES Attendance as a promotion factor: Student Attendance Policy and Procedures section of this handbook. EL student retention coordination: Identification of EL Students Policy section of this handbook. Third grade reading gate appeals: Tennessee Department of Education, tn.gov/education.

STUDENT EQUAL ACCESS AND LIMITED PUBLIC FORUM POLICY

AUTHORITY Charter Commission Policy 4802 · T.C.A. 49-6-2901 et seq. · Equal Access Act, 20 U.S.C. 4071

Policy Statement. Invictus Nashville Charter School provides equal access to all student groups seeking to use school facilities and resources during non-instructional time. No student group shall be denied access to school facilities or resources available to other student groups on the basis of the religious, political, philosophical, or other content of the group's speech, provided the group meets the requirements of this policy.

Non-Curriculum Related Student Groups. A non-curriculum related student group is any student group that does not directly relate to the body of courses offered by Invictus and is not required as part of the curriculum. If Invictus grants an application for any non-curriculum related student group to meet on school premises during non-instructional time, it has created a limited public forum and must grant equal access to all other student groups wishing to meet during non-instructional time, regardless of the religious, political, philosophical, or other content of the group's speech.

Application Procedures. Any student group wishing to meet on school premises during non-instructional time must submit a written application to the Head of Schools or designee. The application must include the name of the group, a description of the group's purpose, the names of student members and any adult sponsors, the requested meeting schedule, and a statement that the group will comply with all applicable school policies. The Head of Schools or designee will respond to applications within ten school days of receipt.

Requirements for Approved Student Groups. All approved student groups must be student-initiated and student-led; meet only during non-instructional time; comply with all school rules and this policy; not be sponsored or controlled by the school or any employee acting in an official capacity; and have meetings that are voluntary and open to all students. Employees may attend student group meetings only in a non-participatory capacity to maintain order and ensure student safety. Non-school persons may not direct, conduct, control, or regularly attend meetings of approved student groups.

Denial of Access. Invictus may deny access to a student group only if the group's activities would materially and substantially interfere with the orderly conduct of educational activities, violate applicable law, or cause the school to abridge the constitutional rights of other students. Denial of access shall be communicated in writing to the group's student organizers within ten school days of the application.

CROSS-REFERENCES Student discipline for conduct at non-curriculum group meetings: Student Discipline Policy section of this handbook.

HUMAN RESOURCES POLICIES

AUTHORITY Charter Commission Policies 5104, 5106, 5118 · T.C.A. 49-5-413 · T.C.A. 49-10-1302 · Child Care Standards 0520-12-01-.07 · TPCSC Personnel/Hiring Procedures · 2 CFR 200.318

Policy Statement. Invictus Nashville Charter School recruits, hires, develops, and retains qualified personnel committed to the school's mission and to the safety and wellbeing of students. All employment decisions are made in compliance with applicable federal and state law, Charter Commission personnel policies, and Child Care Standards as administered by the Tennessee Department of Human Services. The Employee Handbook is the primary document governing the employment relationship. This section establishes the authoritative policy framework to which the Employee Handbook defers on compliance requirements.

Equal Employment Opportunity. TPCSC LEA Policy 5104. Invictus Nashville Charter School is an equal opportunity employer. The school does not discriminate in hiring, compensation, advancement, discipline, or separation on the basis of race, religion, creed, sex, gender identity, sexual orientation, national origin, color, age, veteran status, disability, or any other protected characteristic under applicable federal or state law. Invictus provides reasonable accommodations for sincerely held religious beliefs and observances and for employees with disabilities consistent with the Americans with Disabilities Act, unless doing so creates an undue hardship on school operations. Accommodation requests must be submitted in writing to hr@invictus-nash.org.

Hiring Process and Staff Qualifications. TPCSC LEA Policy 5106; Personnel/Hiring Procedures. All teaching staff must hold a current Tennessee educator license appropriate to their assignment, or be on an approved pathway to licensure, as required by state law and Charter Commission personnel procedures. All teachers of students with disabilities must meet applicable IDEA qualification requirements. Paraprofessionals working in Title I-supported programs must meet federal qualification requirements. For employees hired after June 30, 2017, all teachers, assistant teachers, directors, and assistant directors in Invictus's child care program must be at least 21 years of age at the time of hire, consistent with Child Care Standards 0520-12-01-.07(3). Hiring decisions are documented and maintained in personnel files consistent with the records retention schedule in this handbook. For positions funded in whole or in part by federal awards, hiring must comply with 2 CFR 200.318 and related procurement requirements.

Background Checks and Clearance Requirements

TPCSC LEA Policies 5106, 5118; T.C.A. 49-5-413; Child Care Standards 0520-12-01-.07(15). All prospective employees, contractors with student access, and volunteers with student access must complete and clear all required background checks and registry screenings before assuming any duties or having any unsupervised access to students.

NO EXCEPTIONS

There are no exceptions to this pre-employment clearance requirement. An individual whose required clearances are not complete may not begin employment or assume any duties until all clearances are obtained and reviewed.

Required clearances include Tennessee Bureau of Investigation criminal history fingerprint check; Federal Bureau of Investigation criminal history fingerprint check; Tennessee Vulnerable Persons Registry check; Tennessee Sex Offender Registry check; and any additional screenings required by DHS Child Care Standards or applicable law. If a clearance result indicates a disqualifying offense, the offer of employment is rescinded or the individual is immediately removed from duties. The Director of Operations maintains all clearance documentation in a secure personnel file. All employees must submit new fingerprints every five years per TDOE rules. Failure to complete required rescreening may result in removal from duties pending compliance. All Criminal History Record Information is strictly confidential. Access is limited to authorized personnel with a legitimate need. Misuse may result in disciplinary action, termination, and referral to appropriate authorities.

School Volunteer Background Check Requirements. All volunteers who will have direct, unsupervised access to students must complete a background screening consistent with Child Care Standards 0520-12-01-.07 before assuming any volunteer duties. Volunteers who have not completed required screening may not be left unsupervised with students under any circumstances.

Pre-Service Orientation

Child Care Standards 0520-12-01-.07(5). All new employees must complete a minimum two-hour pre-service orientation before beginning any duties with students. This requirement applies to all staff regardless of prior experience or credentials, and also applies to substitutes and volunteers with student access. Employees may not work unsupervised with students until pre-service orientation is complete and documented. Orientation must cover school program philosophy and mission; emergency procedures and evacuation protocols; student discipline policies and behavior management expectations; child abuse and neglect reporting procedures and mandatory reporter obligations; SIDS safe sleep procedures where applicable; and child dismissal and release policies. Completion of pre-service orientation must be documented in the employee's personnel file.

Employee Conduct, Complaints, and Separation

Employee Discrimination and Harassment Policy. TPCSC LEA Policy 5104. Invictus Nashville Charter School prohibits discrimination and harassment of any employee based on any protected characteristic. Harassment includes verbal, physical, or visual conduct that creates an intimidating, hostile, or offensive work environment or that unreasonably interferes with an employee's work performance. Sexual harassment, including unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature, is prohibited. Employees who experience or witness discrimination or harassment must report it to the Head of Schools or, where the Head of Schools is the subject of the complaint, to the

Board Chair at boardchair@invictus-nash.org. All reports will be investigated promptly and confidentially to the extent practicable. Retaliation against any employee who reports discrimination or harassment in good faith is prohibited.

Employee-Related Complaints and Grievance Policy. TPCSC LEA Policy 5104. Employees with workplace concerns are encouraged to raise them promptly and in good faith. The grievance procedure in this handbook governs all formal employee complaints, including complaints involving discrimination, harassment, and policy violations. The Employee Handbook describes the informal resolution process and defers to this section for formal complaints.

Employee Separation Procedures. TPCSC LEA Policy 5118. Upon separation of any employee, the Director of Operations shall immediately revoke all access to student information systems, email accounts, school networks, and shared drives on or before the employee's final day; recover all school-issued devices, keys, access cards, and materials; remove the employee from all communication platforms involving student data; and confirm that no student records, personally identifiable information, or CHRI have been retained by the departing employee on personal devices or accounts. The Head of Schools or designee shall review any student-facing materials, communications, or records created or managed by the departing employee to confirm appropriate handling and transition. Where a departing employee held a designated role such as EL Coordinator, Special Populations Coordinator, or Homeless Coordinator, the Head of Schools shall immediately designate an interim responsible party and notify the relevant students and families as appropriate. All separation documentation is retained per the records retention schedule in this handbook. References provided for former employees confirm only dates of employment, job title, and salary with employee consent, and are directed to hr@invictus-nash.org.

Protection of Employee Personal Information. TPCSC Uniform Grants Guidance; Federal Programs Sub-recipient Monitoring Guidebook. Invictus protects the personal information of employees consistent with applicable state and federal law. Personnel files are maintained by the Director of Operations and are confidential. Access is limited to individuals with a legitimate business need. Employees may access their own personnel file by submitting a written request to hr@invictus-nash.org. Social Security numbers, health information, and CHRI are maintained in secured files separate from the general personnel file.

CROSS-REFERENCES Alcohol and drug use testing policy: Employee Health Policies section of this handbook. Physician health clearance: Employee Health Policies section of this handbook. Equal opportunity employment and accommodation: Employee Handbook, Section 2. Background check records retention: Records Management Policies section of this handbook.

EMPLOYEE HEALTH POLICIES

AUTHORITY Charter Commission Policies 5400, 3600, 6404 · OSHA Bloodborne Pathogens Standard, 29 CFR 1910.1030 · T.C.A. 49-6-4004 · Child Care Standards 0520-12-01-.07

Policy Statement. Invictus Nashville Charter School provides a sanitary, safe working environment and establishes routine procedures for handling bodily fluids consistent with recommendations from appropriate health professionals. All procedures are OSHA-based and are distributed to all staff. No distinction is made between bodily fluids from individuals with a known disease and individuals without symptoms or with an undiagnosed disease. All staff must follow the most current CDC Universal Precautions for Prevention of Transmission of Bloodborne Infections and the OSHA Bloodborne Pathogens Standard (29 CFR 1910.1030). Invictus maintains well-maintained, easily accessible personal protective equipment and designates first responders responsible for implementing infection control guidelines, including investigating, correcting, and reporting instances of exposure.

Physician Health Clearance. Child Care Standards 0520-12-01-.07. All new employees must submit a completed physician health clearance form verifying fitness to work with children in a group care setting within ten calendar days of their start date. The form must be completed and signed by a licensed physician or healthcare provider. Updated health clearance is required every three years of employment. Documentation is maintained in the employee's personnel file and is not shared with other staff. Employees who do not submit required health clearance documentation within the established timeline may be placed on unpaid leave until the requirement is fulfilled.

Annual Training Requirements. Invictus provides annual training to all employees on HIV, AIDS, infection control, bloodborne pathogens, and universal precautions. Training and appropriate supplies are available to all personnel including transportation and custodial staff. Physical Education teachers and athletic program staff must complete an approved first aid and injury prevention course that includes implementation of infection control guidelines. Annual training must cover at minimum HIV epidemiology; methods of transmission and prevention; bloodborne pathogens; universal precautions; psychological and social aspects of HIV and AIDS; related federal and state laws and policies; and school procedures and policies regarding HIV and AIDS-related issues. The full annual compliance training curriculum is documented in the Employee Handbook and must be completed by all employees each school year. Completion is documented in each employee's personnel file. Employees who have not completed current-year training requirements may not work unsupervised with students until compliance is confirmed.

HIV, AIDS, and Hepatitis B

Nondiscrimination. No employee of Invictus who is living with HIV or AIDS shall be prevented from continuing employment. No disciplinary action may be taken against an employee solely on the basis of HIV status. The governing board shall make reasonable accommodations to enable the employee to perform employment duties as required by state or federal law.

HIV Testing. No school official may require any employee to undergo an HIV antibody test or other HIV-related test. This does not preclude school officials from requiring an employee to undergo an examination when another communicable illness is suspected.

Confidentiality. If information is received regarding an employee's HIV status, the Head of Schools shall initiate procedures to ensure privacy and maintenance of all medically related documents. Information about an employee's HIV status shall be secured by appropriate safeguards limiting access and shall not be documented in the employee's personnel file or transmitted electronically without prior written consent of the employee. Under no circumstances shall information identifying an employee living with HIV be released to the public.

Hepatitis B — Nondiscrimination and Confidentiality. School personnel shall respect an individual's right to privacy and treat any medical diagnosis as confidential. Any staff member who violates confidentiality shall be subject to appropriate disciplinary action. Under no circumstances shall information identifying an employee with Hepatitis B be released to the public.

Hepatitis B — Safety. Employees at high risk of occupational exposure shall be identified and provided with personal protective equipment including Hepatitis B vaccinations. Employees considered at high risk include custodians, school staff, special education teachers and instructional assistants, playground supervisors, coaches, and physical education teachers. When any employee is known to have been exposed to Hepatitis B on the job site, the employee shall be notified immediately by a supervisor and the governing board shall provide vaccinations. An accident report must be filed for all such exposures. These reports shall be kept on file for a minimum of one year.

OSHA Infection Control Procedures. Invictus maintains OSHA-based infection control procedures providing simple and effective precautions against transmission of diseases to persons exposed to blood or bodily fluids. These are standard health and safety practices applied universally without distinction based on known disease status. Invictus follows the current CDC Universal Precautions and the OSHA Bloodborne Pathogens Standard at all times.

Alcohol and Drug Use Testing — Employees and Bus Drivers

Commission LEA Policy 5104. Invictus Nashville Charter School maintains a drug-free and alcohol-free workplace. No employee may report to work, remain at work, or operate a school vehicle while under the influence of alcohol, illegal drugs, or any substance that impairs the ability to perform duties safely and effectively.

Employees in safety-sensitive positions, including bus drivers and any employee operating a school vehicle, are subject to drug and alcohol testing consistent with applicable federal Department of Transportation regulations and state law. Testing may occur pre-employment, following an accident, when there is reasonable suspicion of impairment, on a random basis for safety-sensitive positions, and upon return to duty following a violation. Reasonable suspicion testing may be initiated when a supervisor observes specific, articulable behavioral or physical indicators of impairment. Two supervisors must concur before initiating a reasonable suspicion test whenever practicable.

A confirmed positive test, refusal to test, or adulteration of a sample is treated as a violation of this policy and may result in removal from safety-sensitive duties, disciplinary action, and termination of employment. Employees who self-disclose a substance use concern before a testing event may be considered for an employee assistance referral at the discretion of the Head of Schools. All test results are confidential and maintained separately from the general personnel file. The Director of Operations is responsible for coordinating all required testing, maintaining documentation, and ensuring compliance with applicable federal and state requirements.

CROSS-REFERENCES Annual compliance training curriculum: Employee Handbook, Section 4. Employee confidentiality and personnel records: Human Resources Policies section of this handbook. Physician health clearance documentation retention: Records Management Policies section of this handbook.

STUDENT ATTENDANCE POLICY AND PROCEDURES

AUTHORITY Charter Commission Policy 6200 · T.C.A. 49-6-3001 et seq. · T.C.A. 49-6-3201

Policy Statement. Pursuant to Tennessee law, each minor from six to sixteen years of age shall attend full-time instruction. Invictus Nashville Charter School has an average daily attendance goal of at least 95 percent of students present each day. Attendance is a key factor in student achievement, and students are expected to be present each day school is in session. Invictus oversees the full attendance program, which includes all accounting and reporting procedures and their dissemination; alternative program options for students who severely fail to meet minimum attendance requirements; and ensuring that all enrolled children attend school. Student attendance records are confidential and shall be given the same level of protection as other student records.

Excused Absences. Absences shall be classified as excused or unexcused as determined by the Head of Schools or designee. Excused absences include personal illness; illness of an immediate family member; death in the family; extreme weather conditions; religious observances; travel days for postsecondary visits; pregnancy; school-sponsored or school-endorsed activities; military active duty or deployment as outlined below; a summons, subpoena, or court order; circumstances that in the judgment of the Head of Schools create emergencies over which the student has no control; and participation in an activity or program sponsored by 4-H. Special circumstances such as housing difficulties, transportation difficulties, or required family travel may be approved as excused at the discretion of school leadership. A parent or guardian must justify an absence in writing within five school days of the absence for it to be excused. Students must be present for at least fifty percent of the scheduled school day to be counted present.

Military Service of Parent or Guardian. Invictus shall provide students with one excused absence prior to the deployment and one excused absence upon the return of a parent or guardian serving active military service. Invictus shall also allow up to ten cumulative excused absences per year for students to visit a parent or guardian during a deployment cycle. Documentation of the deployment must be provided to the school.

School Responsibilities. Invictus ensures that attendance is checked and reported daily in the Commission's student information system; daily absentee sheets include sign-in and sign-out sheets; all student absences are verified; written excuses are submitted for absences and tardiness; and students and families are notified annually of all attendance procedures. On or before the beginning of each school year, the Head of Schools shall notify parents and guardians in writing that they have a duty to monitor their student's school attendance and require the student to attend school. The notice shall include a statement that if the student

accumulates five unexcused absences during the school year, the student is subject to the school's progressive truancy interventions and that continued unexcused absences may result in a referral to juvenile court.

Progressive Truancy Intervention Plan

THRESHOLD	ACTION
Daily absence not excused in advance	Contact guardian by call or text.
3 unexcused absences	Written attendance notification sent home.
5 unexcused absences	Attendance meeting with guardian; Attendance Improvement Plan developed; truancy letter sent home.
7 unexcused absences	Attendance meeting with guardian; Attendance Improvement Plan reviewed and updated; truancy next steps shared with family.
10 unexcused absences	Invictus is mandated by the Compulsory School Attendance Law (T.C.A. 49-6-3001) to report a truancy concern to Juvenile Court. Head of Schools communicates this requirement to families.

Tier I – Universal Prevention. School-wide prevention-oriented supports: teaching students about the importance of attendance; sharing and celebrating school attendance goals; contacting the parent or guardian for each daily absence not excused in advance; sending written attendance notifications; and holding attendance meetings between school staff and families.

Tier II – Targeted Intervention. Targeted intervention supports for students at elevated risk of chronic absenteeism: developing an individualized Attendance Improvement Plan in collaboration with the family; reviewing and updating the plan after each threshold; and connecting families with community resources when barriers to attendance are identified.

Tier III – Intensive Response. Applies when the progressive truancy plan has been unsuccessful and the school can document that the parent or guardian is unwilling to cooperate or that interventions have failed to meaningfully address attendance. After written notice to the parent or guardian, the Head of Schools or designee shall report the student's absences to the judge having juvenile jurisdiction in Davidson County.

Attendance Hearing. Students with more than five unexcused absences have the right to appeal a determination of unexcused absence. Invictus shall provide written or actual notice to the student or parent or guardian and the opportunity to be heard.

Make-Up Work. It is the student's responsibility to request make-up work in all subjects upon returning to school. All missed classwork and tests, whether from excused or unexcused absences, may be made up provided the student makes the request immediately upon return.

State-Mandated Tests. Students who are absent on the scheduled day of TN Ready or End of Course exams must make up the exam.

CROSS-REFERENCES Attendance as a promotion factor: Promotion and Retention Policy section of this handbook. Attendance for students with disabilities: Special Education, Child Find, and Referral Procedures section of this handbook. Attendance for students experiencing homelessness: Students Experiencing Homelessness Policy section of this handbook.

PHYSICAL EXAMINATIONS AND IMMUNIZATIONS POLICY

AUTHORITY Charter Commission Policy 6203 · T.C.A. 49-6-5001 · T.C.A. 49-6-5002 · TDOE Immunization Requirements

Policy Statement. Invictus Nashville Charter School requires proof of a complete physical examination prior to each student enrolling in the school for the first time and prior to each student participating as a member of an interscholastic athletic team or in any other strenuous physical activity program. No student shall be permitted to enroll or attend without proof of immunization, except as provided by law.

Immunization Exemptions. Students may be granted an exemption from immunization requirements if a qualified physician certifies in writing that administration of one or more specific immunizations would be harmful to the child, in which case the physician must identify which specific vaccines are medically exempted. Students may also be granted an exemption if a parent or guardian files with school staff a signed written statement affirmed under penalties of perjury that immunization and preventive measures conflict with the religious tenets and practices of the parent or guardian.

STUDENTS EXPERIENCING HOMELESSNESS

No student determined to be homeless under the McKinney-Vento Homeless Assistance Act shall be denied admission to school if the student has not yet been immunized or is unable to produce immunization records due to homelessness. Invictus will comply with all applicable federal laws and will assist the parent or guardian in obtaining the proper immunizations.

Influenza and Meningococcal Disease Information. At the beginning of every school year, Invictus will provide parents and guardians with information about influenza and meningococcal disease and the effectiveness of vaccination against each, including the causes, symptoms, and means of transmission, and the locations where parents and guardians may obtain additional information and vaccinations.

Recommended Vaccines. Some vaccines against serious childhood diseases are recommended for all children but are not required for school attendance. These include vaccines against influenza and, beginning at age eleven, meningococcal disease. All children should be age-appropriately immunized with all recommended vaccines to prevent these serious childhood infections.

Recordkeeping. Official immunization certificates and any attachments and physical examination documentation must be filed in the student's cumulative educational school record. School health documents are part of the educational record and FERPA guidelines govern all disclosure of information.

Parent and Guardian Responsibilities. All students entering Invictus must present proof of immunization and a physical examination completed within the United States. Costs associated with examinations and immunizations are the responsibility of the parent or guardian.

Physical Examination. The physical examination must have been completed within the United States and within one year of the student's date of entry into school. Appointment cards showing scheduled physicals are not accepted. The physical examination must be documented either on the top right of the Tennessee Certificate of Immunization or on a separate dated and signed document from the medical provider and filed in the student's cumulative record.

Immunizations. Immunizations must be documented on an official Tennessee Certificate of Immunization completed by a local health department or Tennessee health care provider. Certificates are valid only for the grade levels documented and until any expiration date on a Temporary Certificate. Original certificates are preferred; legible faxed copies or emailed scanned certificates are acceptable.

Transfer Students. Students transferring from another Tennessee school shall have thirty days, or until the cumulative record is received if sooner, to provide proof of immunizations and a physical examination. If the immunization record is not received within that timeframe or shows deficiencies, the student may not return to school until proof of required immunizations is provided. Students transferring from an out-of-state school within the United States must provide the official Tennessee Certificate of Immunization before being admitted. A prior physical examination completed within the United States within one year of the entry date may be accepted. The appointment for any required physical examination must be scheduled and completed within thirty days of enrollment.

Non-Compliance. If a student is identified as out of compliance with immunization requirements, the Head of Schools shall notify the parent or guardian in writing of the specific deficiency and direct them to the Health Department or a private physician. The letter shall state that the parent or guardian has five school days to return a compliant Certificate of Immunization. After the five-day period, the student may not return to school until the required certificate is presented.

CROSS-REFERENCES Immunization records retention: Records Management Policies section of this handbook.
Students experiencing homelessness enrollment without records: Students Experiencing Homelessness Policy section of this handbook.

ADMISSIONS AND ENROLLMENT POLICY

AUTHORITY Charter Commission Policy 6206 · Procedure 1006 · T.C.A. 49-13-112 · T.C.A. 49-13-113 · TPCSC Enrollment Procedures

Policy Statement. Participation in Invictus Nashville Charter School is based on the choice of the parent, legal guardian, or custodian. Invictus follows Tennessee Public Charter School Commission LEA student enrollment procedures. All eligible students who submit a timely application shall be enrolled unless the number of applications exceeds the capacity of the program, in which case Invictus implements enrollment preferences and a lottery pursuant to state law and Commission rules. Invictus does not accept students residing outside the geographic boundaries of the school district in which it is authorized to locate.

Open Enrollment Period. Parents and guardians may submit an application for enrollment during Invictus's open enrollment period, which runs from January 15 through March 15 of each academic year for enrollment in the following school year. Applications are available on the school website at www.invictus-nash.org. Upon the close of the open enrollment period, Invictus determines appropriate next steps based on the number of applications received. If the number of applications is at or below the maximum seats for a grade level, all students will be enrolled and notified of their admission. If applications exceed available seats for any grade level, Invictus will proceed with its lottery procedure.

Priority Groups

When the lottery is run, eligible applicants who submitted a completed application by the deadline are placed according to the following priority order.

- **Priority Group 1.** Students currently enrolled at Invictus Nashville Charter School who are returning for the following school year. Returning students are re-enrolled prior to the lottery.
- **Priority Group 2.** Siblings of students currently enrolled at Invictus Nashville Charter School, where the sibling will remain enrolled during the upcoming school year.
- **Priority Group 3.** Children of full-time employees of Invictus Nashville Charter School, in accordance with state law and State Board Rule, not to exceed ten percent of total enrollment.
- **Priority Group 4.** Students who reside within the attendance zone of a Tennessee public school that has been identified as in need of improvement under applicable federal law.
- **Priority Group 5.** All other eligible applicants, selected by random lottery.

Lottery Procedures. All eligible applications received by the deadline are run through the lottery in priority group order. Following the lottery, Invictus will notify each family of the results within fourteen calendar days of the lottery date. Families must accept their seat by the deadline stated in the notification letter or their seat will be offered to the next student on the waitlist.

Waitlist Procedures. Students not placed due to insufficient seats are assigned a place on the waitlist in the order determined by the lottery. Families are notified of their child's waitlist position. As seats become available, Invictus promptly contacts families in waitlist order to offer the available seat. If a family cannot be reached after multiple attempts or does not contact the school to accept within the stated response window, the seat is offered to the next student on the waitlist.

Enrollment Process. Upon accepting a seat, families are informed of all steps needed to complete enrollment including attending an admissions orientation and submitting all required paperwork: enrollment packet, birth certificate, immunization records, proof of residence, and parent or guardian photo identification. Families must be offered a site visit prior to enrollment. The Student and Family Handbook must be provided and a signed parent or guardian acknowledgment of receipt must be obtained before or at the time of enrollment and filed in the student's enrollment record.

Enrollment of Special Populations

Students Experiencing Homelessness. If Invictus has not exceeded its enrollment capacity, homeless students shall be immediately enrolled even if unable to produce records normally required for enrollment, and even if they missed the application or enrollment deadline. Parents and guardians must submit contact information to the Homeless Coordinator (Damoniece Lowe, dlowe@invictus-nash.org) upon enrollment.

Students in Foster Care. Students in foster care shall be immediately enrolled if accepted through the enrollment period or lottery, even if unable to produce records normally required for enrollment.

Students with Disabilities. Invictus enrolls students with disabilities consistent with IDEA and Section 504 requirements. A student's disability status does not affect eligibility for enrollment.

English Learners. Identification and screening of EL students is completed within thirty days of enrollment per the Identification of EL Students Policy in this handbook.

Military-Connected Students. Invictus collects information regarding military-connected students during enrollment as part of the enrollment packet.

Immigrant and Migrant Students. Immigrant and migrant student status is collected during enrollment and coded appropriately in the student information system. Migrant student occupational survey forms are administered annually to all students at enrollment.

Nondiscrimination. Invictus does not discriminate in enrollment on the basis of race, color, national origin, sex, disability, religion, or any other characteristic protected by applicable law.

Parent Notification of Right to Appeal Enrollment Denial. Commission LEA Policy 4209. A parent or guardian who is denied enrollment in a course or program at Invictus has the right to appeal that denial. Written notice of the denial and the right to appeal must be provided to the parent or guardian within five school days of the denial decision. Appeals must be submitted in writing to the Head of Schools within thirty calendar days of receiving the denial

notice. The Head of Schools will respond in writing within fifteen school days of receiving the appeal. If the appeal is not resolved at the school level, the parent or guardian may submit the matter to the Charter Commission in accordance with Commission grievance procedures.

CROSS-REFERENCES Lottery and enrollment procedures: TPCSC Enrollment Procedure 1006. Homeless student enrollment: Students Experiencing Homelessness Policy section of this handbook. Foster care student enrollment: Foster Student Policy section of this handbook. Immunization and physical exam requirements at enrollment: Physical Examinations and Immunizations Policy section of this handbook.

POLICY 27 STUDENT SAFETY & CONDUCT

BULLYING, CYBER-BULLYING, DISCRIMINATION, HARASSMENT, AND HAZING POLICY

AUTHORITY Charter Commission Policy 6304 · T.C.A. 49–6–4501 et seq. · T.C.A. 49–6–1015 · TPCSC LEA Policy 6304

Policy Statement. To maintain a safe and supportive school environment, acts of bullying, cyber-bullying, intimidation, discrimination, harassment including sexual harassment, hazing, or any other victimization of students based on any actual or perceived traits or characteristics are prohibited at Invictus Nashville Charter School. This policy covers employees and their behaviors, students and their behaviors while on school property, at any school-sponsored activity, on school-provided equipment or transportation, or at any official school bus stop. If an act takes place off school property or outside a school-sponsored activity, this policy applies if the conduct is directed specifically at a student or students and has the effect of creating a hostile educational environment or otherwise substantially disrupting the educational environment or learning process.

Invictus disseminates this policy annually to all school staff, students, and parents and guardians, and is responsible for educating and training staff and students on the definitions and recognition of discrimination and harassment. This policy is published on the school website and included in the Student and Family Handbook.

Definitions

- **Bullying, Intimidation, and Harassment** is an intentional act that substantially interferes with a student's educational benefits, opportunities, or performance, and has the effect of physically harming a student or damaging a student's property; knowingly placing a student in reasonable fear of physical harm or damage to property; causing emotional distress to a student; creating a hostile educational environment; or creating unwelcome conduct based on a protected class that is severe, pervasive, or persistent and creates a hostile environment. Protected classes include race, nationality, ethnicity, gender or sex, age, disability, and religion.
- **Cyber-bullying** is a form of bullying undertaken through the use of electronic devices including telephones, cellular phones, wireless telecommunication devices, computers, text messages, emails, social networking sites, instant messaging, videos, websites, or fake profiles.

- **Hazing** means any intentional or reckless act, on or off school property, by one or more students directed against another student that endangers the mental or physical health or safety of the student, or that induces or coerces a student to endanger their own mental or physical health or safety. Coaches and other employees may not encourage, permit, condone, or tolerate hazing activities. Hazing is a criminal offense under T.C.A. 49-6-1015. The school's hazing policy is distributed or made available to each student at the beginning of each school year. During the first month of each new school year, time is set aside to specifically discuss the hazing policy and its ramifications as a criminal offense, the penalties that may be imposed by Invictus, and applicable criminal penalties under state law.

Complaints and Investigations. Students and staff must immediately report incidents of bullying, harassment, or hazing to the Head of Schools or designee. Staff who witness such acts must take immediate steps to intervene when safe to do so and complete the Invictus Incident Report Form. All reports are treated confidentially to the extent practicable. Retaliation against any person who reports bullying or participates in an investigation is prohibited and is itself a violation of this policy.

Response and Prevention. Invictus provides staff development training in bullying prevention and cultivates acceptance and understanding among all students and staff. Teachers discuss this policy with students in age-appropriate ways and assure students that they need not endure any form of bullying. Students who bully are in violation of this policy and are subject to disciplinary action up to and including expulsion. School faculty, administration, and staff model courteous behavior toward each other, students, and visitors at all times. Abusive or humiliating language or conduct is not acceptable. Prevention and intervention procedures include distributing a summary of this policy to all staff, students, and parents and guardians at the beginning of the school year; making all reasonable efforts to keep reports and investigation results confidential; requiring staff who witness bullying to intervene immediately when safe to do so; and implementing professional development, parental workshops, and student assemblies as prevention strategies.

Montessori Approach to Bullying Prevention. Invictus works with teachers, staff, students, and parents throughout the year so that all members of the school community understand the definition of bullying, how to address it appropriately, and how it differs from the developmentally typical personal conflict that all young people face. Community meetings in each homeroom develop a sense of trust and openness for discussions and lessons on bullying. Students who need additional support beyond the classroom receive individualized supports determined by the Support Team in collaboration with the parent or guardian, which may include time with the school social worker, a support plan from the behavior analyst, or small group social skills instruction.

District Requirements. Invictus complies with all Charter Commission requirements for reporting bullying incidents. Bullying incidents are recorded and reported to the Commission as required.

Sexual Abuse and Harassment Prevention Policy

Effective March 2026. T.C.A. 37-1-403; T.C.A. 49-6-1016; Child Care Standards 0520-12-01-.07.

Purpose. Invictus Nashville Charter School is committed to providing a safe environment for all students, free from sexual abuse, harassment, and exploitation. This policy establishes procedures to prevent, identify, and respond to incidents of sexual abuse and harassment involving students.

Definitions

- **Sexual abuse** means any sexual act, contact, or exploitation directed at a child, including but not limited to sexual touching or contact; exposure of genitalia; photographing or recording a child in a sexual manner; solicitation of sexual acts; and any other act that constitutes sexual abuse under Tennessee law.
- **Sexual harassment** means unwelcome sexual advances, requests for sexual favors, or other verbal, physical, or electronic conduct of a sexual nature directed at a student.

Prevention and Training. All employees must complete training on the recognition and prevention of sexual abuse and harassment before working with students, and annually thereafter. Training covers recognizing signs of sexual abuse and grooming behaviors; appropriate professional boundaries with students; mandatory reporting obligations under T.C.A. 37-1-403; how to respond to a student's disclosure; and school reporting procedures. Training completion is documented in each employee's personnel file.

Prohibited Conduct. The following conduct is prohibited for all employees, volunteers, and contractors: sexual contact of any kind with a student; solicitation of sexual acts from a student; sharing or displaying sexually explicit material with a student; communicating with students in a sexual manner through any medium; being alone with a student in a non-public space without a legitimate educational purpose and without the knowledge of another adult; and any other conduct that constitutes sexual abuse, harassment, or exploitation under Tennessee law or school policy.

MANDATORY REPORTING OBLIGATIONS

All employees are mandatory reporters under T.C.A. 37-1-403. Any employee who has reasonable cause to suspect that a student has been subjected to sexual abuse or harassment must report immediately to the Tennessee Department of Children's Services at 1-877-237-0004 and to local law enforcement. This reporting obligation is personal and direct — it is not satisfied by reporting to a supervisor alone. Following the DCS report, the employee must also notify the Head of Schools immediately.

When a student discloses abuse or harassment to an employee, the employee must listen calmly and without judgment; tell the student they did the right thing by telling someone; explain that the employee is required to report; not promise confidentiality; not conduct an investigation or ask leading questions; and report immediately.

School Response. Upon receiving a report of suspected sexual abuse or harassment, the Head of Schools shall notify DCS and law enforcement if not already done; notify the governing board chair; secure the safety of the affected student and prevent further contact with the alleged perpetrator; cooperate fully with all external investigations; and document all actions taken. No employee accused of sexual abuse or harassment may be alone with students pending investigation.

Confidentiality. All information related to reports of sexual abuse or harassment is strictly confidential. Information is shared only as required by law, for the protection of the child, or with authorized persons on a need-to-know basis.

Non-Retaliation. Invictus does not retaliate against any student, parent, guardian, or employee who reports suspected sexual abuse or harassment in good faith.

External Resources

Tennessee DCS Child Abuse Hotline: **1-877-237-0004** (24 hours) · Local law enforcement: **911** for emergencies · U.S. Department of Education, Office for Civil Rights (for civil rights violations).

CROSS-REFERENCES Title IX sexual harassment procedures: Title IX and Sexual Harassment Policy section of this handbook. Child abuse mandatory reporting: Grievance and Complaint Policy section of this handbook. Employee professional boundaries: Employee Handbook, Section 7.

TITLE IX AND SEXUAL HARASSMENT POLICY AND PROCEDURES

AUTHORITY Charter Commission Policy 6305 · Title IX of the Education Amendments of 1972 · 34 C.F.R. Part 106 · T.C.A. 49-6-1016

Policy Statement. In order to maintain a safe, civil, and supportive learning environment, all forms of sexual harassment and discrimination on the basis of sex are prohibited. This policy covers Invictus employees, employees' behaviors, students, and students' behaviors while on school property, at any school-sponsored activity, on school-provided equipment or transportation, or at any official school bus stop, in accordance with federal law. This policy is disseminated annually to all staff, students, and parents and guardians and is published on the school website.

Notice of Non-Discrimination. Invictus Nashville Charter School does not discriminate on the basis of race, color, national origin, disability, age, or sex in the delivery of its education programs and activities. Invictus is required by Title IX not to discriminate in such a manner. Questions or concerns regarding this policy may be directed to the Title IX Coordinator identified below or to the U.S. Department of Education's Office for Civil Rights. This policy of non-discrimination extends to employment and admission considerations.

Definitions

- **Complainant** is a student or employee alleged to be the victim of conduct that could constitute sex discrimination under Title IX, or an individual other than a student or employee who was participating or attempting to participate in an Invictus education program or activity at the time of the alleged discrimination.
- **Respondent** is an individual reported to be the perpetrator of conduct that could constitute sexual harassment or sex discrimination.
- **Sexual harassment** includes conduct on the basis of sex that satisfies one or more of the following: an Invictus employee conditioning education benefits on participation in unwelcome sexual conduct (quid pro quo); unwelcome conduct that a reasonable person would determine is so severe, pervasive, and objectively offensive that it effectively denies a person equal access to an Invictus education program or activity; or sexual assault, dating violence, domestic violence, or stalking as defined by applicable federal law.

- **Sex-based harassment** includes sexual harassment and non-sexual harassment based on gender identity, transgender status, gender expression or appearance, or failure to conform to gender stereotypes. Behaviors constituting sexual harassment may include but are not limited to sexually suggestive or offensive remarks; sexually suggestive pictures, gesturing, or exposure; verbal harassment or abuse of a sexual nature; harassing, abusive, or sexually suggestive messages sent by email or other electronic medium; subtle or direct propositions for sexual favors; and touching, patting, or pinching. Sexual harassment may be directed against any person regardless of sex.

Sexual violence and sexual harassment are prohibited and will not be tolerated involving a student by another student; a student by a staff member; and any other person associated with Invictus. This policy also prohibits sexual harassment among Invictus employees and authorized volunteers.

Adam Holdren

Director of Operations · Title IX Coordinator

2526 Lebanon Pike, Nashville, TN 37214

aholdren@invictus-nash.org

The Title IX Coordinator's responsibilities include coordinating Invictus's compliance with Title IX including grievance procedures; drafting and publicizing reporting procedures; overseeing prevention of and response to Title IX reports and complaints; ensuring fair, equitable, and prompt resolution of complaints; offering complainants supportive measures with or without a formal complaint; explaining the formal complaint process to complainants; identifying and addressing patterns or systemic problems; providing confidential written reports to the Head of Schools and Board at least once every four months, maintained in a secure Title IX file; and providing training to employees, volunteers, and school community members on Title IX. The Title IX Coordinator and any investigators or decision makers must be free of any conflict of interest or bias for or against complainants or respondents. All reports or complaints filed pursuant to Title IX or reasonably related to Title IX must be provided to the Title IX Coordinator.

Dr. Brenda Jones

Head of Schools · Decision Maker

bjones@invictus-nash.org

The Decision Maker in all formal Title IX grievance proceedings is the Head of Schools. The Decision Maker must not be the same person as the Title IX Coordinator or the Investigator. When the Head of Schools has a conflict of interest with any party to the complaint, the Board Chair serves as the Decision Maker. The Decision Maker's determination is subject to appeal to the governing board as described below.

Reporting

All Invictus employees, other than school counselors, social workers, student assistance counselors, school nurses, and psychologists who are required to maintain confidentiality of information shared with them, must report incidents of alleged Title IX violations to the Title IX Coordinator as soon as they have actual knowledge of conduct allegedly in violation of this policy. Employees must report all relevant details including the names of the alleged respondent and complainant, the date, time, and location of the alleged conduct, and the circumstances surrounding it. An employee's failure to report a known violation shall result in disciplinary action up to and including termination.

Students who witness alleged violations, or parents and guardians whose children inform them of alleged violations, should report to the Title IX Coordinator. Whether victims choose to file a complaint or not, they will not be disciplined for failing to report themselves. Knowingly filing false reports shall result in disciplinary action.

Supportive Measures. Upon receiving a credible report of an alleged violation, Invictus will take all necessary measures to ensure the safety of all parties, including separating the complainant from the respondent, providing alternative schedules, and providing necessary support services. Complainants will be provided contact information for available resources including victim assistance organizations, law enforcement, mental health services, legal assistance, and counseling services. If the respondent is an employee and the complainant is a student, Invictus will report the alleged misconduct to appropriate law enforcement agencies and legal counsel.

Informal Resolution. Where appropriate given the nature of the allegations, Invictus may offer the parties the option to pursue an informal resolution process such as mediation that does not involve a full investigation and adjudication. All parties must voluntarily agree to pursue informal resolution after receiving full written disclosure of the allegations and their options for formal resolution. Invictus will not offer an informal resolution process to resolve allegations that an employee sexually harassed a student.

Formal Grievance Process

A formal grievance process is initiated when a complainant submits a written statement alleging discrimination prohibited by Title IX to the Title IX Coordinator, or the Title IX Coordinator receives a report of a suspected Title IX violation from another student, employee, volunteer, or community member. Upon receipt of a grievance, the Title IX Coordinator shall designate a Title IX Investigator who may be the Coordinator or a trained investigator from within or outside Invictus, provided the investigator is not the Decision Maker. The Title IX Coordinator will provide written notice of the investigation to all parties, including a copy of this policy, a description of the allegations, the identities of the parties, and the date and location of the incident if known.

Grievance procedures shall treat complainants and respondents equitably; require that coordinators, investigators, and decision makers be free of conflicts of interest; maintain a presumption that the respondent is not responsible until a determination is made; establish prompt timeframes for each major stage with a process for reasonable extension for good

cause; protect the privacy of parties and witnesses during proceedings; require objective evaluation of all relevant evidence; and inform parties of the right to appeal a dismissal. Invictus applies a preponderance of the evidence standard of review to all Title IX complaints and investigations. Hearings are not required for complaints involving elementary and secondary school students.

After reviewing the investigator's report and any submissions from parties, the Decision Maker shall prepare a written report setting forth findings, conclusions, and actions to be taken. The Title IX Coordinator shall take appropriate action to ensure Invictus implements any required remedies promptly and equitably.

Appeal. If any party wishes to appeal the Decision Maker's determination, that party must submit a written appeal to the Invictus Board of Trustees within ten business days of receiving the decision.

Sexual Harassment as Sexual Abuse. Under certain circumstances, sexual harassment of a student may constitute sexual abuse as defined under state law. In such situations Invictus shall comply with state laws as well as Commission and school policies regarding the reporting of suspected abuse to DCS and law enforcement. Reports of known or suspected child abuse must be made to the Tennessee Department of Children's Services at 1-877-237-0004.

Retaliation. No individual who exercises their Title IX rights shall be subject to retaliation. Neither the school nor any person may intimidate, threaten, coerce, or discriminate against any individual for the purpose of interfering with any right or privilege secured by Title IX, or because the individual has made a report or complaint, testified, assisted, or participated or refused to participate in any Title IX investigation, proceeding, or hearing. The school shall keep confidential the identities of complainants, respondents, and witnesses except as permitted by FERPA, required by law, or necessary to carry out a Title IX proceeding.

EXTERNAL COMPLAINTS

Title IX complaints may be filed at any time with the U.S. Department of Education, Office for Civil Rights: 61 Forsyth Street SW, Suite 19T10, Atlanta, GA 30303-8927. Telephone: 404-974-9406. Email: OCR.Atlanta@ed.gov.

CROSS-REFERENCES Sexual abuse mandatory reporting: Bullying, Cyber-Bullying, Discrimination, Harassment, and Hazing Policy section of this handbook. ADA/Section 504 coordinator: ADA/Section 504 Complaint Policy section of this handbook. Employee harassment obligations: Employee Handbook, Section 4.

STUDENT ALCOHOL AND DRUG USE POLICY

AUTHORITY Charter Commission Policies 6307, 6313 · T.C.A. 49-6-4215 · T.C.A. 49-6-4216 · T.C.A. 39-17-417

Policy Statement. The purpose of this policy is to promote and maintain a safe and healthful environment for the entire school community. Invictus Nashville Charter School has adopted a substance use policy that delineates a plan of action when student use is detected, provides for corrective disciplinary action, and connects students and families to appropriate community resources.

Prevention and Education. Invictus provides all students access to a curriculum with embedded instruction and activities that focus on educating students on the dangers of alcohol and drug use. Staff receive in-service training on the signs and symptoms of student drug use and abuse and on the school's procedures for handling these situations.

Discipline. Any student found to be in possession of, using, or selling illegal or unauthorized drugs or alcohol; suspected of being under the influence of drugs or alcohol; or in possession of illegal drug paraphernalia may be suspended out of school for up to five days. Suspected use by a student will require a medical assessment. Students who refuse to submit to an evaluation will be considered to have made an act of admission, which will be considered along with other evidence in determining whether the student is under the influence of a controlled substance. This policy is enforced in the school building, on school property, on school buses, and at all school-sponsored functions.

When a student violates the drug and alcohol use policy: the student may be immediately suspended for up to five days; the appropriate law enforcement or juvenile officer may be immediately notified and all evidence turned over to that authority; parents or guardians will be notified and referred to a reinstatement review meeting; parents or guardians and the student must both attend the reinstatement review; and all procedural guidelines for suspension or expulsion will be followed.

Intervention. Students returning to Invictus after a suspension for a drug or alcohol violation are required to attend a reinstatement review meeting. The reinstatement review team, which includes the Head of Schools, Director of Operations, and school counselor, will review the suspension report, discuss the incident with the parent or guardian and student, and determine whether to recommend further disciplinary action or a behavioral support plan. This plan may require students to meet with the school social worker, school counselor, or attend outside counseling or support services.

CONFIRM BEFORE DISTRIBUTION

The reinstatement review committee name and membership should be confirmed by the Head of Schools before publication.

Inpatient and Outpatient Treatment. Any student absent from school due to attendance at a community inpatient or outpatient treatment program will be provided educational support. The Head of Schools, school faculty, the student, parents or guardians, and community treatment personnel will work cooperatively to ensure the student's privacy rights under HIPAA and FERPA and to facilitate educational support when the student returns to full-time in-person learning.

Alcohol and Drug Testing

All students are entitled to learn in a safe environment free of dangerous substances. All school property, including but not limited to desks, closets, and school-associated items, is subject to search as determined necessary and appropriate.

A student may be subject to testing for the presence of drugs or alcohol if there is reasonable indication to the Head of Schools that the student may have used or be under the influence of drugs or alcohol. The need for testing may be identified through an authorized search, observed or reported use on school property, or other reasonable information from a teacher, staff member, or student. All of the following standards of reasonableness must be met: a particular student has violated or is reasonably suspected of violating school policy; the test will yield evidence of the violation or establish impairment or non-use; the test is in pursuit of legitimate school interests in maintaining order, discipline, safety, supervision, and education; the test is not conducted solely to discover evidence for criminal prosecution; and tests are conducted in the presence of a designated witness.

For purposes of this policy, drugs means any scheduled drug as specified in state law and alcohol. Tests are conducted by properly trained persons in circumstances that ensure integrity, validity, and accuracy. All tests are performed by an accredited laboratory. Specimens confirmed as positive are retained for at least ten days for possible retesting or reanalysis. Students are advised in writing at the time of enrollment that they are subject to testing. Notice includes the grounds for testing, the procedures that will be followed, and possible penalties. Students are advised of their right to refuse testing and the consequences of refusal. A parent or guardian must be notified before any drug test is administered to a student.

If a student is tested and results are negative, all records of the test will be expunged from all records. If results are positive, all records are confidential student records. No student who tests positive in a drug testing program may be suspended or expelled solely as a result of the positive test. The Head of Schools or school counselor will provide referral information to the student and parent or guardian including information on inpatient, outpatient, and community-based drug and alcohol treatment programs.

Search and Seizure. Under the Fourth Amendment to the U.S. Constitution, students are protected from unreasonable search and seizure conducted by public school officials. Searches shall be conducted based upon reasonable suspicion that school rules or applicable law have been or will be violated. A search may be conducted on any area of property under the jurisdiction of Invictus including items of personal property in the control or possession of a student. School authorities are authorized to seize illegal items or contraband that may

present a threat to safety. Items seized are retained in proper order to preserve a controlled chain of custody for purposes of law enforcement referral. Authorized individuals include the Head of Schools, Director of Operations, faculty, staff, or persons designated by the Head of Schools. A search of an automobile may only be conducted with the permission of the operator or owner. Parents or guardians will be contacted upon completion of any search conducted by authorized individuals.

Canine Searches. The use of dogs trained to detect illegal drugs or other contraband, whether conducted by law enforcement or others retained by the school, may occur anywhere on school property, school vehicles, and at school events. The use of dogs to search school property or the personal property of students or others does not require a reasonable suspicion of a violation.

Breathalyzer. Any student for whom there is a reasonable suspicion of alcohol use before or during the school day, prior to or during school-sponsored activities, or on school property may be asked to submit to a breathalyzer test. Indicators of reasonable suspicion may include but are not limited to alcohol odor, slurred speech, unsteady gait, lack of coordination, presence in the vicinity of an alcohol container, bloodshot or glazed eyes, or other reasonable information raising suspicion. No breathalyzer test will be administered if a student acknowledges consumption of alcohol. Breathalyzer tests are administered in a secure location away from other students by the Head of Schools, Director of Operations, or other trained designee. Parents or guardians are called following administration of the test. If a student tests positive, parents or guardians must transport the student home. If a parent or guardian is not available, local law enforcement may be called.

CROSS-REFERENCES Student discipline procedures: Student Discipline Policy section of this handbook. Zero tolerance violations involving drugs or weapons: Zero Tolerance Policy section of this handbook.

ZERO TOLERANCE POLICY AND PROCEDURES

AUTHORITY Charter Commission Policies 6309, 6317 · T.C.A. 49-6-3401 · T.C.A. 39-17-1309 · T.C.A. 39-16-517 · T.C.A. 49-6-2701 through 2703

Policy Statement. Invictus Nashville Charter School is committed to ensuring a safe and secure learning environment free of drugs, drug paraphernalia, violence, and dangerous weapons. This policy imposes swift, certain, and reasoned disciplinary sanctions on any student who brings a drug, drug paraphernalia, or a dangerous weapon onto a school bus, school property, or to any school-related event or activity; while on a school bus, on school property, or at any school-related event or activity is under the influence of a drug, possesses a drug, drug paraphernalia, or a dangerous weapon, or assaults or threatens to assault a teacher, student, or other person; or transmits by an electronic device any communication containing a credible threat to cause bodily injury or death to another student or school employee where that transmission creates actual disruptive activity at the school that requires administrative intervention pursuant to T.C.A. 39-16-517.

Zero tolerance means that violations of this policy will not be tolerated and that violators will receive certain, swift, and reasoned punishment. Reasoned punishment may include a spectrum of disciplinary measures designed to correct student misbehavior and promote student respect and compliance with codes of conduct and policies.

Zero Tolerance Offenses

The following are mandatory zero tolerance offenses under state law and this policy. A zero tolerance offense shall result in a one calendar year expulsion, unless modified on a case-by-case basis by the Head of Schools:

- Bringing to school or being in unauthorized possession on school property of a firearm.
- Commission of aggravated assault upon any teacher, principal, administrator, any other employee of the school or LEA, or a school resource officer.
- Unlawfully possessing any drug including any controlled substance, controlled substance analogue, or legend drug.
- Threatening mass violence on school property or at a school-related activity pursuant to T.C.A. 39-16-517.

Modification and Appeals. The Head of Schools has authority to modify zero tolerance disciplinary actions on a case-by-case basis. Commission LEA Policy 6317 governs requirements for modification of zero tolerance expulsions and appeal procedures. If a student threatens mass violence on school property or at a school-related activity, the Head of Schools shall require the student to submit to a threat assessment to determine whether the threat was credible. The student may be suspended from school or school-related activities until the threat assessment is complete. If the Head of Schools determines that the

threat was not a valid threat, the student shall not be expelled for a zero tolerance offense but may be suspended. The use of a threat assessment does not override the rights available to students with disabilities under IDEA or Section 504, including the right to a free appropriate public education and the right to a manifestation determination review.

Threat Assessment. The Head of Schools, in consultation with the Director of Operations and appropriate staff, conducts threat assessments when required by this policy or when a student's conduct raises a credible concern about safety. A formal school-based Threat Assessment Team under T.C.A. 49-6-2701 through 2703 is an optional policy element under the TPCSC checklist. Invictus will evaluate whether to establish a formal team as part of its annual EOP review.

Reasonable Force. In compliance with state law, a teacher, principal, school employee, or school bus driver may use reasonable force when necessary. If a school leader or designee finds following investigation that a student acted in self-defense under a reasonable belief that the student or another person may have been facing the threat of imminent danger of death or serious bodily injury, the student may not face disciplinary action. Corporal punishment shall not be used as a disciplinary measure under any circumstances.

Discipline of Students with Disabilities. Invictus shall ensure that all requirements of state and federal law including IDEA and Section 504 are followed when disciplining students with disabilities. Zero tolerance procedures are subject to manifestation determination review requirements as described in the Special Education, Child Find, and Referral Procedures section of this handbook.

Notice of Policy. Invictus annually reports its zero tolerance policy and procedures to the Charter Commission. This policy is disseminated to all students, parents, and guardians at the beginning of each school year through the Student and Family Handbook and is published on the school website.

CROSS-REFERENCES Full disciplinary procedures and due process: Student Discipline Policy section of this handbook. DHA appeal procedures for zero tolerance offenses: Student Disciplinary Hearing Authority section of this handbook. Discipline of students with disabilities: Special Education, Child Find, and Referral Procedures section of this handbook. Drug and alcohol offenses: Student Alcohol and Drug Use Policy section of this handbook.

STUDENT DISCIPLINE POLICY AND PROCEDURES

AUTHORITY Charter Commission Policy 6313 · T.C.A. 49-6-3401 · T.C.A. 49-6-4215 · IDEA Part B, 34 C.F.R. Part 300
· TPCSC Disciplinary Hearing Authority Procedures

Policy Statement. Invictus Nashville Charter School maintains a safe environment conducive to learning to ensure an equal and appropriate educational opportunity for all students. Invictus provides a fair and consistent approach to student discipline within the context of students' rights and responsibilities. Invictus designed its discipline procedures to balance accountability with an understanding of trauma-informed behavior; teach school rules while reinforcing that violent or abusive behavior is not allowed; minimize disruptions to education through positive behavioral supports; create consistent rules and consequences; and model respectful, non-violent relationships.

Positive Behavioral Support Framework

Invictus implements a multi-tiered system of behavioral support aligned with its whole child development approach. Staff use restorative practices, RTI2-Behavior, multi-tiered systems of support, and behavior intervention plans to provide wraparound support for each student's unique developmental journey.

- **Tier I Universal.** Universally available social-emotional support for all students. Invictus uses teaching and lessons to support character development, student agency, self-regulated learning, problem-solving, and emotional regulation.
- **Tier II Targeted.** Small group instruction, social skills development, and targeted behavioral supports for students who need additional support beyond universal interventions.
- **Tier III Intensive.** Individualized behavioral support plans including Functional Behavior Assessments and Behavior Intervention Plans for students who require intensive, individualized support.

Montessori Community Meetings. Invictus uses Montessori-aligned community meeting structures as a primary prevention tool. These structures include a greeting step to build connection and belonging; a daily check-in for students to share and practice emotional vocabulary; a community building activity to develop prosocial skills including responding to peer refusal, collaborative problem-solving, and emotional regulation; and a closing reflection.

Consequences. Students receive fair, consistent, and appropriate consequences based on the nature of the infraction. Minor infractions may be addressed through verbal correction, redirection, or other feedback. More serious or repeated misbehavior may result in a phone call home, removal from the classroom, loss of privileges, and for the most serious offenses, suspension or expulsion from school.

Behavior Expectations and Consequences

Tier A — In-School Suspension or Detention Eligible

BEHAVIOR	DESCRIPTION	CONSEQUENCE
Cheating or Plagiarism	Use of another student's work, notes, or an electronic device to gain an unfair advantage on an assignment.	ISS/detention; 1 day OSS. Not expulsion eligible.
Inappropriate Physical Contact with Another Student	Horseplay, play fighting, contact to private parts.	ISS/detention; 1 day OSS. Not expulsion eligible.
Setting Off False Alarms	Pulling the fire alarm.	ISS/detention; 1 day OSS. Not expulsion eligible.
Skipping Class or School	Arriving but not entering building; remaining in unauthorized locations during class.	ISS/detention; 1 day OSS. Not expulsion eligible.
Profane or Indecent Language Toward Peer or Staff	Cursing at a student or calling a staff member a name.	1 day OSS; egregious: 2–3 days OSS with public apology. Not expulsion eligible.
Repeated or Extreme Disruption of the School Environment	Continuously and intentionally disrupting the environment such that learning or normal functioning is significantly impaired.	ISS/detention; 1 day OSS. Not expulsion eligible.
Noncompliance with a Staff Directive	Ignoring or refusing to follow a direction from a staff member.	ISS/detention; 1 day OSS. Not expulsion eligible.
Elopement	Leaving a classroom, designated location, school grounds, or activity without permission.	ISS/detention; 1 day OSS. Not expulsion eligible.

Tier B — Out-of-School Suspension and Expulsion Eligible

BEHAVIOR	DESCRIPTION	CONSEQUENCE
Fighting	Two participants wrestling, pushing, punching, or slapping.	ISS/detention; 1–3 days OSS. Not expulsion eligible.
Threats — Class 1	Written, verbal, or electronic threat to cause harm where no credible plan to carry it out exists.	ISS/detention; 1–2 days OSS. Not expulsion eligible.
Vandalism Under \$500	Willfully destroying or defacing school or personal property.	ISS/detention; 1 day OSS. Not expulsion eligible.
Theft Under \$500	Taking property without permission with intent to deprive the owner.	ISS/detention; 1 day OSS. Not expulsion eligible.
Repeated Violations or Pattern of Behavior	Any offense that continues after prior intervention.	ISS/detention; 1 day OSS. Not expulsion eligible.
Inappropriate Sexual Behavior	Sexually suggestive remarks or advances; pictures, gesturing or exposure; touching, petting, or pinching; or sexual behavior between consenting parties on school grounds or at an activity.	1–3 days OSS. Not expulsion eligible.
Alcohol or Drug-Like Substance Use / Possession / Influence	Under the influence of alcohol or a substance with potential to intoxicate but not an illegal drug. (See Zero Tolerance for illegal drugs.)	1–3 days OSS. Not expulsion eligible.
Possession of a Non-Lethal Firearm or Replica	Possessing a toy or replica firearm.	1–3 days OSS. Not expulsion eligible.
Possession of Other Weapons	See Zero Tolerance Policy for firearms and explosives.	1–3 days OSS. Not expulsion eligible.
Trespassing	Entering or remaining on school property or in restricted areas without authorization.	1–3 days OSS. Not expulsion eligible.
Inappropriate Physical Contact Toward Staff	Intentional or reckless minor physical contact with a staff member such as pushing or bumping.	1–3 days OSS. Not expulsion eligible.
Gang Activity	Display of symbols or paraphernalia; recruitment or initiation of a student into a gang.	1–3 days OSS. Not expulsion eligible.

Tier C — Expulsion Eligible

BEHAVIOR	DESCRIPTION	CONSEQUENCE
Assault of Teacher or Staff	Intentional or reckless act causing or with potential to cause physical injury to a teacher or staff member. (See Zero Tolerance for aggravated assault.)	1–5 days OSS. Expulsion eligible.
Under the Influence of Illegal Drugs	Under the influence of illegal drugs on school grounds or at activities.	1–3 days OSS. Expulsion eligible.
Threats — Class 2	Threat to cause harm where evidence exists of a specific, credible plan. (See Zero Tolerance for electronic threats.)	1–3 days OSS. Expulsion eligible.
Bullying	Intentional act, severe/persistent/pervasive, substantially interfering with another student's education. Expellable if it persists after team intervention.	1–3 days OSS. Expulsion eligible.
Cyberbullying	Use of communication technologies to bully another student. Expellable if it persists after team intervention.	1–3 days OSS. Expulsion eligible.
Harassment / Intimidation Based on Protected Class	Misconduct based on race, color, national origin, religion, sex, sexual orientation, or disability.	1–3 days OSS. Expulsion eligible.
Sexual Harassment	Unwelcome sexually suggestive remarks, advances, exposure, electronic messages, propositions, or touching.	1–3 days OSS. Expulsion eligible.
Extreme Disruption of the School Environment	Intentional disruption that puts the safety of others at risk, such as throwing chairs or repeatedly striking objects.	1–3 days OSS. Expulsion eligible.
Group Fighting	Three or more students in a physical altercation, or multiple simultaneous altercations.	1–5 days OSS. Expulsion eligible.
Sexual Assault	Unwanted sexual contact using force or when the victim cannot consent.	1–5 days OSS. Expulsion eligible.
Robbery	Taking property by use of violence or with a weapon.	1–5 days OSS. Expulsion eligible.
Reckless Endangerment	Intentional action that causes or may cause injury to students or staff.	1–5 days OSS. Expulsion eligible.
Assault of a Student	Intentional or reckless unprovoked physical attack on another student.	1–5 days OSS. Expulsion eligible.

BEHAVIOR	DESCRIPTION	CONSEQUENCE
Fighting — Repeated	Two or more fights in a school year.	1–5 days min. up to 1-year expulsion. Expulsion eligible.
Vandalism Over \$500	Willfully destroying or defacing property causing damage over \$500.	1–3 days OSS. Expulsion eligible.
Theft Over \$500	Taking property with intent to deprive the owner, value over \$500.	1–3 days OSS. Expulsion eligible.
Refusing or Fleeing Drug or Weapon Search	Refusing to submit to or fleeing a search. Expellable only with evidence of drugs or firearms.	1–3 days OSS. Expulsion eligible.
Off Campus Behavior	Felony charge under T.C.A. 49-6-3051(b)(1), or an act against a school community member posing a threat to school safety.	1–5 days OSS. Expulsion eligible.
Rape	—	Expulsion eligible.
Attempted Homicide	—	Expulsion eligible.
Homicide	—	Expulsion eligible.

Bus Discipline Policy

INFRACTION LEVEL	EXAMPLES	CONSEQUENCE
Level 1	Eating, drinking, or gum on the bus; throwing objects; littering.	Demerit and afterschool detention.
Level 2	Second offense of a Level 1 infraction; destruction of bus property; moving out of seat while bus is in motion; throwing something out of the window; disrespect to bus driver.	1-day bus suspension.
Level 2 — 2nd offense	—	2-day bus suspension.
Level 2 — 3rd offense	—	3-day bus suspension.
Level 2 — 4th offense	—	4-day bus suspension and parent meeting.
Level 2 — 5th offense	—	5-day bus suspension.
Level 2 — 6th offense	—	Suspended for remainder of semester.

Bus suspensions count toward the ten-day IDEA suspension threshold for students with IEPs where transportation is a related service.

Notification and Due Process. For any suspension, the Head of Schools or designee shall provide immediate written or actual notice to the student and parent or guardian of the reason for the suspension and the duration. For suspensions of more than ten school days, Invictus shall provide immediate written or actual notice of the right to appeal to the Disciplinary Hearing Authority within five school days of notification of the suspension or expulsion, and shall provide a copy of the appeal policy and procedures.

Safe Relocation of Students. Invictus provides school-based professional development and support on classroom management and behavioral management techniques including de-escalation and restorative practices. When a student's behavior escalates beyond reasonable classroom management, school leaders will enact a plan to support safe relocation of the student from their present location to another location for the student's safety or the safety of others. The use of reasonable or justifiable force as defined in state statute is permitted to accomplish this task when a student is unwilling to cooperate. This procedure is subject to the Physical Restraint and Seclusion Policy embedded in the Special Education section of this handbook.

Posting of Policy. This discipline policy and code of conduct is posted on the school's website. A copy is provided to all school counselors, teachers, administrative staff, students, and parents annually.

Discipline of Students with Disabilities

Invictus ensures all requirements of state and federal law including IDEA and Section 504 are followed when disciplining students with disabilities. Staff are trained to administer discipline appropriately to students with disabilities consistent with their IEP, BIP, or 504 Plan.

Suspensions of Ten Days or Fewer. Students with disabilities may be removed or suspended from school for up to ten cumulative days in a school year without triggering IDEA procedural protections. During these ten days there is no duty to provide alternative services, an IEP meeting, a manifestation review, a BIP, or an FBA. Beginning on the eleventh cumulative day of suspension, the school must conduct a manifestation determination review.

In-School Suspensions. In-school suspension days do not count toward the ten-day threshold as long as the student continues to appropriately participate in the general curriculum, continues to receive IEP services, and continues to participate with non-disabled students to the extent that would have occurred in their current placement.

Bus Suspensions. If transportation is a related service in the student's IEP, bus suspensions count toward the ten-day threshold unless Invictus provides alternative transportation. If transportation is not in the IEP, bus suspensions do not count toward the threshold and the family is responsible for transportation.

Short-Term Removals. Brief removals including time-outs, resets, and being sent to the office do not count toward the ten-day threshold.

Long-Term Removals and Change of Placement. A removal constitutes a change of placement when it exceeds ten consecutive school days. Any removal occurring after the ten FAPE-free days have been exhausted will generally constitute a change of placement.

Manifestation Determination Review. When a removal constitutes a change of placement, the school must conduct an MDR within ten school days with a minimum of 24 hours notice to the parent or guardian. Services must be provided during removal to an interim alternative setting pending the MDR. The IEP or 504 team determines the interim alternative educational setting. The MDR team includes the Head of Schools or designee, the case manager, an Invictus representative, the parent or guardian, school psychologist, a general education teacher, and relevant IEP team members such as related service providers. The team reviews all relevant information including the student's IEP or 504, teacher observations, and information provided by parents or guardians. If conduct is not a manifestation of the disability, the school may discipline the student consistent with its discipline policy. The student must continue to receive services during any period of removal. If conduct is a manifestation of the disability, the school must conduct a Functional Behavior Assessment unless one has been completed for similar conduct. A BIP must be developed or modified to address the behavior. The student is returned to the placement from which they were removed unless the parent or guardian and school agree a change of placement is needed.

Remand to Alternative School. When a student is suspended or expelled, Invictus shall refer the student to alternative school as required by Commission policy. Students remanded to alternative school must comply with the compulsory attendance law. If a special circumstance justifies an alternative disposition, Invictus shall notify the Commission immediately.

Disciplinary Hearing Authority Procedures

Charter Commission Policy 6317; TPCSC Disciplinary Hearing Authority Procedures.

Establishment. The Invictus governing board shall appoint a Disciplinary Hearing Authority consisting of at least two members, not to exceed the total membership of the governing board. At least one DHA member must be a licensed employee of Invictus. All appointments are for one-year terms subject to reappointment. Governing board members may not serve on the DHA. Names of appointed members shall be reported to the Commission consistent with TPCSC Disciplinary Hearing Authority Procedures. The governing board shall appoint a DHA chair who sets the time, place, and date for each hearing; maintains order and structure during hearings; and prepares, signs, and disseminates minutes of each meeting. Invictus shall produce a written record of each DHA proceeding. Students have the right to have an attorney participate in DHA hearings.

Suspensions and Expulsions of More Than Ten School Days. When a student is suspended or expelled for more than ten school days, Invictus shall provide immediate written or actual notice to the student and parent or guardian of the right to appeal to the DHA within five school days of notification. The DHA shall provide written notification to the student, parent or guardian, and any other appropriate person of the time, place, and date of the hearing in a language the parent and student understand. The hearing shall be held no later than ten school days after the beginning of the suspension or expulsion. The DHA shall make a decision and communicate it to the student and family within three business days by certified mail following the meeting. The DHA may affirm the decision of the school leader; order removal of the suspension or expulsion unconditionally; order removal upon such terms and conditions as it deems reasonable; assign the student to an alternative program or night school; or suspend or expel the student for a specified period of time.

Within five school days of the DHA rendering a decision, the student, parent or guardian, school leader, or assistant school leader may request a review by the governing board. The governing board shall review the record and may grant or deny the request for a hearing, or affirm or overturn the DHA decision with or without a hearing. The governing board shall not impose a more severe penalty than the DHA without first providing an opportunity for a hearing. The decision of the governing board is final.

Zero Tolerance Appeal Procedures. Students found to have committed a zero tolerance offense shall be given the right to appeal to the DHA within five school days of receiving notice of the expulsion. The DHA may only consider guilt or innocence of the zero tolerance infraction and whether the student received proper due process. The DHA shall communicate its decision to the student and family within three business days by certified mail following the meeting. The DHA may not modify the mandatory one-calendar-year expulsion but may

make a recommendation to the Head of Schools regarding a proposed modification. Within five school days of the DHA decision, the student or parent or guardian may appeal to the Head of Schools to seek modification of the mandatory expulsion. The Head of Schools shall consider any DHA recommendation but is not bound by it and shall render a decision within seven calendar days. Within five school days of the Head of Schools rendering a decision, the student or parent or guardian may appeal to the governing board regarding guilt or innocence of the zero tolerance infraction and whether proper due process was provided. The governing board shall make its decision within five days of receiving the request. The decision of the governing board is final. The Head of Schools shall notify the Commission of any modification made to the mandatory one-calendar-year expulsion for zero tolerance offenses within five school days of the final disposition after any appeals.

CROSS-REFERENCES Zero tolerance offenses and mandatory expulsions: Zero Tolerance Policy section of this handbook. Discipline of students with disabilities: Special Education, Child Find, and Referral Procedures section of this handbook. Physical restraint and seclusion: Section 4 of this handbook. Bullying and harassment incidents: Bullying, Cyber-Bullying, Discrimination, Harassment, and Hazing Policy section of this handbook. Bus discipline and transportation: Transportation Policy section of this handbook.

STUDENT WELLNESS AND HEALTH SERVICES POLICY

AUTHORITY Charter Commission Policy 6400 · Policies 6404, 6409, 6413 · T.C.A. 49-6-3004 · T.C.A. 49-5-415 · T.C.A. 49-6-5001 · T.C.A. 49-6-4201 through 4206 · Child Care Standards 0520-12-01-.13

Policy Statement. Invictus Nashville Charter School develops procedures, programs, and plans to promote and protect the health and welfare of students. At minimum these include a student guidance program; student psychological services including services provided by the School Psychologist, Occupational Therapist, Speech Therapist, and Physical Therapist for students whose IEPs require such supports; student social services; student health services including the administration of medications; and student wellness plans for students with chronic health conditions.

GOVERNING DOCUMENT

The INCS Wellness Policy is the governing document for nutrition services, physical activity requirements, and USDA compliance. The Policy Handbook does not reproduce Wellness Policy content. All references to nutrition, meal programs, physical activity minimums, and USDA nondiscrimination requirements should be directed to the INCS Wellness Policy, maintained as a standalone Tier 2 document and posted on the school website.

Suicide Prevention

T.C.A. 49-6-3004. Invictus is committed to protecting the health and well-being of all students. Physical, behavioral, and emotional health are integral components of student achievement. Faculty and staff are expected to be proactive in maintaining a safe and supportive learning environment and to immediately report to the Head of Schools any indications that a student may be in danger of harming themselves or others. The Head of Schools shall designate a suicide prevention coordinator who serves as the point of contact for suicide prevention policy implementation and annual training coordination.

Prevention. Invictus provides annual in-service training in suicide prevention for all certificated staff consistent with T.C.A. 49-6-3004. Training includes identification of risk factors and warning signs, intervention and response procedures, referrals, and postvention strategies. Completion is documented in each employee's personnel file. Students are provided information regarding the 988 Suicide and Crisis Lifeline (call or text 988). Staff are trained to connect students in crisis to this resource and to the school counselor or social worker immediately.

Intervention. When a student exhibits suicidal behavior or makes a statement that could be interpreted as suicidal, staff must immediately report to the Head of Schools or designee. The Head of Schools or designee shall contact the student's parent or guardian immediately and document the incident including the time, date, and circumstances; a timeline of actions taken by school officials; the parent or guardian contacted and the nature of all attempts; the

parent or guardian's response; the time and date of release of the student to an authorized individual; and anticipated follow-up and safety plan. Prior to returning to school, the Head of Schools or designee shall meet with the parent or guardian and, where appropriate, the student. The parent or guardian shall provide documentation from a mental health care provider stating that the student has received care and is no longer a danger to themselves or others.

Postvention. Immediately following a student suicide death, Invictus shall convene and implement a postvention plan that addresses at minimum verification of death; preparation of a postvention response including support services; informing faculty and staff of the student's death; informing students that a death has occurred; and providing information on available resources.

Food Allergies and Life-Threatening Conditions

Commission LEA Policy 6400. Invictus develops and implements a plan based on guidelines from the Tennessee Department of Education for the management of students with life-threatening food allergies. When a student enters school identified as having a severe allergic reaction or anaphylaxis risk, the school nurse or health designee must be notified. Students must have an Allergic Reaction Action Plan and Emergency Care Plan that includes a diagnosis by the treating health care provider; identification of the allergen; any prior history of anaphylaxis; detailed emergency treatment procedures in the event of a reaction; signs and symptoms of a reaction; and any medications prescribed for anaphylaxis treatment.

Administration of Medication

T.C.A. 49-5-415; Child Care Standards 0520-12-01-.13. The administration of any medication at Invictus complies with state law and Charter Commission rules and policies. Students must never bring medication to their classroom. All prescription medications administered by school personnel must be accompanied by a signed statement from the physician and parent or guardian detailing dosage and time of administration, and confirmation from the child's doctor that the medication must be administered at school. All medications are kept in a locked cabinet in the office. No medication is distributed until a completed authorization form is on file. Students may self-administer emergency medications, including epinephrine auto-injectors, inhalers, and insulin, where consistent with a current Individual Health Plan authorized by a licensed health care provider and parent or guardian written consent.

Administration of Epinephrine. Invictus may administer epinephrine pursuant to applicable state law and maintains school-supplied epinephrine auto-injectors consistent with Commission Policy SP 6.131 and applicable DHS Child Care Standards.

Administration of Adrenal Insufficiency Medications. If a student is suffering from an adrenal crisis, a school nurse or other licensed health care professional may administer the prescribed medication. If a licensed professional is not immediately available, trained school personnel may administer the medication.

Administration of Anti-Seizure Medications. Invictus may administer anti-seizure medications pursuant to applicable state law. Trained school personnel who volunteer without duress may administer anti-seizure medications including diazepam gel to a student in an emergency situation pursuant to that student's Individual Health Plan. Invictus reports on this administration to the Commission annually.

OSHA Infection Control and Privacy of Student Medical Documents. Commission LEA Policy 6404. Invictus implements OSHA-based infection control procedures and universal precautions as described in the Employee Health Policies section of this handbook. Privacy procedures for student medical documents are governed by FERPA and the Records Management Policies section of this handbook. Student medical information is maintained in secured files separate from the general cumulative record. No student medical information is released without prior written consent of the parent or guardian except as required by law.

Child Abuse Reporting Procedures

Commission LEA Policy 6409; T.C.A. 37-1-403. Tennessee law requires all school employees to report known or suspected child abuse or neglect to the Tennessee Department of Children's Services or to local law enforcement. This obligation applies regardless of the source of the information and requires no prior investigation or internal reporting. A staff member making a good-faith report is protected from liability under state law even if the report is later determined to be unfounded.

HOW TO REPORT

DCS Child Abuse Hotline (24 hours): **1-877-237-0004**. In emergencies: **911**. Employees must report immediately upon having reasonable cause to suspect abuse or neglect. Following the DCS report, the employee must also notify the Head of Schools. The Head of Schools does not need to be notified before making a DCS report. Failure to report is a criminal offense under T.C.A. 37-1-403.

Concussion and Sudden Cardiac Arrest

Commission LEA Policy 6413; T.C.A. 49-6-4201 through 4206; T.C.A. 68-6-201. Invictus adopts and implements concussion and sudden cardiac arrest policies consistent with T.C.A. 49-6-4201 through 4206. Any student suspected of having sustained a concussion or exhibiting signs or symptoms of sudden cardiac arrest during a school-sponsored athletic activity shall be removed from activity immediately. A student who has been removed from activity may not return until the student is evaluated by a licensed health care provider and receives written clearance for return. Invictus annually distributes concussion and sudden cardiac arrest information to students and parents or guardians participating in school-sponsored athletic activities.

Invictus maintains at least one accessible Automated External Defibrillator on school property consistent with T.C.A. 68-6-108. At least one staff member certified in CPR and AED use is present during all school-sponsored athletic activities consistent with Child Care Standards 0520-12-01-.13(13)(g).

Cardiac Emergency Response Plan. Invictus maintains a Cardiac Emergency Response Plan as required by Commission LEA Policy 6400. The plan is reviewed annually and is integrated into the school's Emergency Operations Plan.

Athletics Emergency Action Plan. Invictus establishes, reviews, and annually rehearses an Athletics Emergency Action Plan for responding to serious or life-threatening injuries sustained by students participating in school athletic activities, consistent with T.C.A. 68-6-201(c) and (d). The AEAP is integrated into the Emergency Operations Plan.

CROSS-REFERENCES Nutrition services and USDA compliance: INCS Wellness Policy. Physical activity requirements: INCS Wellness Policy. Student medical records retention: Records Management Policies section of this handbook. Emergency response procedures: INCS Emergency Operations Plan.

STUDENTS EXPERIENCING HOMELESSNESS POLICY AND PROCEDURES

AUTHORITY Charter Commission Policy 6503 · McKinney-Vento Homeless Assistance Act · ESSA Title IX, Part A · T.C.A. 49-6-3001

Policy Statement. Invictus Nashville Charter School is committed to ensuring that every student experiencing homelessness has equal access to the same free, appropriate public education provided to all other children and youth. This policy is established in compliance with the McKinney-Vento Homeless Assistance Act (Title IX, Part A of the Every Student Succeeds Act) and all applicable Tennessee state requirements.

Definition of Homelessness

Homeless students are individuals who lack a fixed, regular, and adequate nighttime residence. This includes students sharing housing with others due to loss of housing, economic hardship, or similar reason; students living in motels, hotels, trailer parks, or camping grounds due to lack of alternative adequate accommodations; students living in emergency or transitional shelters or abandoned in hospitals; students whose primary nighttime residence is a public or private place not designed for regular sleeping; students living in cars, parks, public spaces, abandoned buildings, bus or train stations, or similar settings; and migratory students who qualify as homeless because they are living in the circumstances described above.

Identification and Enrollment. During the enrollment process, all families are required to complete the Student Residency Questionnaire. This form allows Invictus to identify families experiencing homelessness. Enrollment paperwork is reviewed by school leadership upon receipt and recorded appropriately in PowerSchool. Staff who become aware of a student's homeless status at any point during the school year are required to notify the Homeless Coordinator immediately. Homeless students shall be immediately enrolled in Invictus even if the student is unable to produce records normally required for enrollment, including academic records, immunization records, health records, and proof of residency. Homeless students shall not be denied enrollment due to missed application or enrollment deadlines. Parents and guardians are required to provide contact information to the Homeless Coordinator upon enrollment.

School of Origin. The school of origin is the school a child or youth attended when last permanently housed, or the school in which the child or youth was last enrolled, including any preschool or pre-K program. For purposes of this policy, the school of origin for an Invictus student is Invictus if it was the school attended when last permanently housed. School of origin also includes the designated receiving school at the next grade level when the student completes the final grade level served by the school of origin.

Placement and Best Interest Determination. Placement shall be determined based on the student's best interest. A strong presumption that keeping the student in the school of origin is in the student's best interest shall be maintained at all times, unless doing so would be contrary to a request made by the student's parent or guardian, or by the student in the case of an unaccompanied youth. If after conducting the best interest determination it is determined that attending the school of origin is not in the student's best interest, the Head of Schools or designee shall provide a written explanation of the reasons, in a manner and form understandable to the parent, guardian, or unaccompanied youth, including a statement regarding the right to appeal. If the placement decision is appealed, Invictus shall immediately enroll the student in the school in which enrollment is sought pending final resolution of the dispute, and shall refer the parent, guardian, or unaccompanied student to the Charter Commission's homeless liaison for dispute resolution.

Comparable Services. Invictus ensures that each homeless student receives services comparable to those provided to other students, including transportation services, special education services, career and technical education programs, programs for gifted and talented students, school nutrition, and school supplies and uniforms provided free of charge.

Additional Support. Invictus provides the following additional support to homeless students and unaccompanied youth: assistance with the enrollment process and paperwork; help with school issues, questions, and concerns; housing and community resource information; help with obtaining birth certificates, immunization records, and school records; parent education sessions and workshops; referrals for dental, medical, and mental health services; and school supplies and uniforms.

Transportation. Invictus arranges transportation for homeless students upon request of the parent or guardian. Transportation must be arranged promptly to ensure immediate enrollment and prevent barriers to attendance, retention, and success. Transportation to the school of origin may be funded through Title I, Part A set-aside funds or from McKinney-Vento sub-grant funds.

Privacy and Confidentiality. Information regarding a student's living situation is treated as a student education record and shall not be considered directory information. Public discussion of a student's homeless status with other students or non-essential staff is strictly prohibited. Resources and support are provided privately and with minimal disruption to avoid stigmatization.

Damoniece Lowe

Assistant Head of Schools · School-Level Homeless Coordinator

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The Homeless Coordinator is responsible for ensuring this policy is fully implemented and shall quickly identify homeless students and ensure access to education and support services; ensure homeless students are correctly coded in PowerSchool; coordinate with local social service agencies; coordinate transportation, transfer of records, and other inter-district activities; refer homeless students and their families to health care, dental, mental health,

substance abuse, and housing services; assist homeless students in obtaining immunizations, medical or immunization records, and any additional needed assistance; ensure homeless students receive required supplies including school uniforms free of charge; disseminate public notice of the educational rights of homeless students in places frequented by parents and guardians; and ensure unaccompanied youth are enrolled and informed of their status as independent students.

Coordination with Partner Programs. The Homeless Coordinator coordinates with special education staff and IEP teams, transportation providers, community social service agencies, local housing and shelter organizations, and other school districts and LEAs as needed. Homeless student enrollment and services are a standing topic at Leadership Team Meetings.

Professional Development. The Head of Schools ensures that professional development is provided to all school personnel who provide services to homeless students, covering identification of homeless students, the rights of homeless students under McKinney-Vento, and the procedures in this policy.

Data Tracking and Reporting. All families complete the Student Residency Questionnaire during enrollment. Enrollment paperwork is reviewed by school leadership and coded appropriately in PowerSchool. Records related to homeless status are maintained confidentially as student education records.

Dispute Resolution. If Invictus and a parent, guardian, or unaccompanied youth disagree over school enrollment or placement, Invictus shall immediately enroll the student in the school in which enrollment is sought, pending resolution of the dispute. The Homeless Coordinator will refer the parent, guardian, or unaccompanied student to the Charter Commission's homeless liaison to carry out the dispute resolution process in accordance with law and Commission procedures.

Pre-K Priority Enrollment. Invictus prioritizes students experiencing homelessness for enrollment in any available pre-K programs, in accordance with ESSA Title IX, Part A.

CROSS-REFERENCES Enrollment without records: Admissions and Enrollment Policy section of this handbook. Transportation for homeless students: Transportation Policy section of this handbook. FERPA and student record confidentiality: Records Management Policies section of this handbook. Surrogate parent for unaccompanied homeless youth: Special Education, Child Find, and Referral Procedures section of this handbook.

MIGRANT STUDENTS PROCEDURES

AUTHORITY Charter Commission Policy 6504 · ESSA Title I, Part C · 20 U.S.C. 6391 et seq. · TPCSC Federal Programs Sub-recipient Monitoring Guidebook

Policy Statement. All eligible students who submit a timely application shall be enrolled in Invictus Nashville Charter School unless the number of applications exceeds the capacity of the program, in which case enrollment preferences and a lottery shall be instituted pursuant to state law. A student's migratory status shall not preclude enrollment. Educational services will be provided for all migrant students in accordance with local, state, and federal laws, policies, and guidelines.

Identification of Migrant Students. Each parent or guardian will complete the Tennessee statewide Occupational Survey upon the student's enrollment at Invictus and annually at the start of each subsequent school year of enrollment. The statewide Occupational Survey template is used for all surveys consistent with current TPCSC requirements. The Director of Operations or designee is responsible for administering, collecting, and processing all Occupational Surveys. The Director of Operations or designee shall enter occupational survey data into PowerSchool upon the student starting at Invictus and at the start of each subsequent school year. Upon receipt of each completed survey, the Director of Operations or designee shall complete the For School Use Only section at the bottom of the form. Completed Occupational Surveys must be kept in the student's cumulative file at the school.

Any survey with one or more yes response is an indication of a potential migrant student. The Director of Operations or designee must forward any such surveys to the appropriate Charter Commission Federal Programs Coordinator. The Commission then sends the surveys to the Migrant Education Program. The MEP determines eligibility and issues Certificates of Eligibility for students who qualify. Invictus maintains a tracking log of all Occupational Surveys with at least one yes response and reports annually to TDOE as required. If a parent or guardian does not return a completed Occupational Survey, the Director of Operations or designee shall follow up directly with the family, using interpretation or translation services as needed for families with limited English proficiency.

Migrant Student Certification. Once the MEP verification process is complete and a student is certified as migratory, the Director of Operations or designee shall identify the student as Migrant in PowerSchool with the correct qualifying arrival date within seven days of receiving the Certificate of Eligibility. Any change in a migrant student's status shall be updated in PowerSchool immediately. A copy of all Certificates of Eligibility is maintained on file at the school.

Services for Migrant Students. Migrant students participate in diagnostic assessments within two weeks of enrollment for core instructional programs. Migrant students are eligible for all student support services available to all Invictus students following the same participation

procedures, including gifted and talented programs, special education services, counseling programs, elective and fine arts classes, and all Title I programs. Migrant students participate in all school-based and state-required standards assessments.

Individual Needs Assessment. The Director of Operations shall submit an Individual Needs Assessment to the Commission Migrant Coordinator within ten working days of receiving an approved Certificate of Eligibility.

Nutrition and FRPL Status. The Director of Operations shall verify the free and reduced price lunch status of all students with official Certificates of Eligibility with the department of school nutrition for the qualifying time period, which extends 36 months from the qualifying arrival date.

Community Connections. The Director of Operations shall notify the Charter Commission Federal Programs Coordinator of the identification of a migrant student to support connecting the student and parent or guardian to local advocacy and outreach programs. The Director of Operations ensures the school communicates with migrant students and their families in a language they understand, coordinating with the EL Coordinator (Stacey Jones, sjones@invictus-nash.org) for all translation and interpretation needs.

Coordination with Other Programs. The Director of Operations, in coordination with the EL Coordinator and school counselor, ensures that migrant students are connected to all applicable programs including EL services, after-school programming, and any other services for which the student is eligible.

Professional Development. Invictus provides professional development to staff regarding the school's role in the identification of migrant students and the provision of support services. Training covers what constitutes a migratory family under federal law; how to administer and process the Occupational Survey; how to connect identified migrant students to services; and the rights of migrant students under ESSA Title I, Part C.

CROSS-REFERENCES Translation and interpretation for LEP families: Identification of EL Students Policy section of this handbook. EL services for migrant students who are EL: Identification of EL Students Policy section of this handbook. Special education services for migrant students with disabilities: Special Education, Child Find, and Referral Procedures section of this handbook. Enrollment without records: Admissions and Enrollment Policy section of this handbook.

FOSTER STUDENT POLICY AND PROCEDURES

AUTHORITY Charter Commission Policy 6505 · ESSA Title I, Part A · Fostering Connections to Success and Increasing Adoptions Act · TPCSC Foster Care Procedures

Policy Statement. Invictus Nashville Charter School is committed to ensuring that students in foster care receive educational stability and equal access to a high-quality education. This policy is established in compliance with Title I, Part A of the Every Student Succeeds Act, the Fostering Connections to Success and Increasing Adoptions Act, and all applicable Tennessee state requirements.

Definition. Students in foster care are children in 24-hour substitute care placed away from their parents or guardians by the Tennessee Department of Children's Services in foster family homes or foster homes of relatives, group homes, emergency shelters, or residential facilities, childcare institutions or pre-adoptive institutions, or other substitute care settings as defined by DCS.

Enrollment. Students in foster care shall be immediately enrolled at Invictus even if unable to produce records normally required for enrollment, including academic records, immunization records, health records, or proof of residency. A student's foster care status shall not preclude enrollment or delay services.

School of Origin. The school of origin is the school at which a child is enrolled at the time of placement in foster care, or the school in which the child is enrolled when there is a change in placement address if the child is already in foster care. Invictus maintains a strong presumption that keeping a student in their school of origin is in their best interest. Students shall remain in their school of origin or the school in which enrollment is sought pending resolution of any disputes.

Best Interest Determination. When school placement is in question, Invictus, the Charter Commission, and DCS shall jointly conduct a Best Interest Determination. Parties consulted shall include the student, foster parents, biological parents where appropriate, the DCS caseworker, and relevant school staff including IEP or 504 team members as applicable. This determination shall be made as quickly as possible to prevent educational disruption. Student-centered factors considered include preferences of the student and the student's parents or educational decision makers; the student's attachment to the school including relationships with staff and peers; placement of the student's siblings; influence of the school climate on the student including safety; availability and quality of services to meet the student's educational needs; history of school transfers and their impact on the student; how the length of commute would impact the student based on developmental stage; whether the student has a disability under IDEA or Section 504 and availability of required services at an alternative school; and whether the student is an English learner and availability of required services at an alternative school consistent with Title VI and the Equal Educational

Opportunities Act. Transportation costs shall not be considered when determining best interest. If it is not in the student's best interest to remain in the school of origin, the Head of Schools shall provide a written explanation of the reasons including notice of the right to appeal. If appealed, Invictus shall refer the matter to the Charter Commission's foster care liaison for expeditious resolution and shall immediately enroll the student in the school in which enrollment is sought pending resolution.

Identification and Internal Communication Workflow. Upon identification of a student in foster care: the enrolling staff member, classroom teacher, or front office notifies the Foster Care Point of Contact immediately upon identification; the Foster Care Point of Contact verifies foster status through enrollment documents, DCS notification, or direct certification; the student is coded in PowerSchool with the foster care indicator within one business day of verification; the Foster Care Point of Contact notifies the Charter Commission's foster care point of contact per Commission reporting protocol; if the student has an active IEP or 504 Plan, the Special Populations Coordinator (Stacey Jones, sjones@invictus-nash.org) is notified immediately to ensure services continue without interruption; the Foster Care Point of Contact contacts the DCS caseworker to coordinate placement, records transfer, and any needed BID; and all actions taken are documented and maintained in the student's confidential file.

Services and Stability. Invictus ensures students in foster care receive comparable services to all other students, including special education and IEP services, Section 504 accommodations, English language services, counseling and student support, school nutrition programs, and all extracurricular and enrichment activities. If a student exits foster care during the academic year, the student may maintain all additional services through the end of that academic year and may remain enrolled at the school of origin through at least the end of the academic year.

Transportation. Invictus coordinates with the Charter Commission and DCS to provide prompt, cost-effective transportation to the school of origin for students in foster care. Transportation shall not be delayed pending resolution of any agency cost dispute. Funding responsibility shall be determined in coordination with DCS and the Commission per ESSA requirements. The Commission and Invictus ensure that a student in foster care remains in their school of origin while any disputes regarding transportation costs are being resolved. If additional costs are incurred in providing transportation to the school of origin, the school shall provide transportation if the local child welfare agency agrees to reimburse the school for the costs; the school agrees to pay for the cost; or the school and local child welfare agency agree to share the cost. A copy of any contracted transportation services shall be provided to the Charter Commission annually.

Jonathan Salls

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The Foster Care Point of Contact is responsible for coordinating with DCS and the Commission to ensure immediate enrollment of students in foster care; managing BID processes in collaboration with DCS and the Commission; coordinating and documenting transportation procedures; ensuring students in foster care are enrolled and regularly attending school; coordinating data sharing with TDOE and DCS consistent with FERPA; facilitating transfer of records and immediate enrollment; and coordinating professional development for staff on the educational rights and needs of students in foster care. Annually, Invictus shall designate the Foster Care Point of Contact and notify the Charter Commission's foster care point of contact of the individual's contact information. Invictus shall also submit all written procedures, contracts, agreements, or memorandums of understanding related to serving students in foster care to the Charter Commission's foster care point of contact annually.

Privacy. All information regarding a student's foster care status is treated as a confidential student education record under FERPA. Foster care status shall not be disclosed to other students, non-essential staff, or any party without appropriate authorization.

Professional Development. The Head of Schools ensures that staff responsible for serving students in foster care receive training on Title I provisions, the educational rights of students in foster care, BID procedures, and the school's identification and notification workflow.

CROSS-REFERENCES Enrollment without records: Admissions and Enrollment Policy section of this handbook. Transportation for foster students: Transportation Policy section of this handbook. Special education services: Special Education, Child Find, and Referral Procedures section of this handbook. EL services for foster students who are EL: Identification of EL Students Policy section of this handbook.

SURROGATE PARENT POLICY AND PROCEDURE

AUTHORITY Charter Commission Policy 6506 · 34 C.F.R. 300.519 · IDEA Part B

Policy Statement. Invictus Nashville Charter School recognizes the importance of providing all children with disabilities access to a free and appropriate public education. Under state and federal law, parents and guardians have the right to actively participate in educational decision-making for their children with disabilities. When no parent or guardian is available or able to fulfill that role, Invictus will recruit, train, and assign a surrogate parent as required by law.

A surrogate parent is required when the parent as defined in 34 C.F.R. 300.519 cannot be identified; the school, after reasonable efforts, cannot locate a parent; the child is a ward of the state; or the child is an unaccompanied homeless youth as defined in 42 U.S.C. 11434a(6).

The surrogate parent represents the child in all matters relating to identification, evaluation, educational placement, and the provision of a free appropriate public education. The surrogate parent is not responsible for financial costs or direct care of the child and must keep all information from the child's educational, medical, or social services records confidential.

Eligibility and Selection. A person selected as a surrogate parent must not be an employee of the SEA, LEA, or any other agency involved in the education or care of the child; must have no personal or professional interest that conflicts with the child's interests; and must have the knowledge and skills to adequately represent the child. For a child who is a ward of the state, a judge may appoint the surrogate. For unaccompanied homeless youth, appropriate staff of emergency shelters, transitional shelters, independent living programs, or street outreach programs may serve as temporary surrogate parents.

Invictus will follow the Tennessee Department of Education's Educational Surrogate Training Manual to recruit, train, and assign surrogate parents when needed.

CROSS-REFERENCES Special education procedural safeguards: Special Education, Child Find, and Referral Procedures section of this handbook. Unaccompanied homeless youth: Students Experiencing Homelessness Policy section of this handbook.